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A Portrait of a Neighborhood Under Chronic Condition: Community Policing



The Politic

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Politics *of* Blood

INDIGENOUS COMMUNITIES IN CANADA CONFRONT HIV/AIDS EPIDEMIC

BY **KYLE RANIERI**

I don't remember much of that day when I got my test back, but what I do remember is being in a tiny white room with a complete stranger, 18 years old and frightened," recounted Kecia Larkin.

On September 11th, 1989, Larkin, a Canadian woman from the Kwa'kwa'wakw and Peigan First Nations in British Columbia, was diagnosed with HIV. She acquired the virus through unprotected sex and sharing intravenous needles with her boyfriend of 8 months who discovered his HIV+ status too late. Now in her 40s, Larkin is a leading advocate for HIV awareness in Canadian aboriginal communities. She believes the Canadian federal government has been complicit in the deaths of indigenous people living with HIV and that major changes are needed to take place to fix a system that has been broken since the AIDS epidemic began.

Larkin is not alone in her dismay towards the Canadian government and its treatment of indigenous people. In October 2015, indigenous communities across Canada flocked to the polls to participate in national elections for a new Parliament and Prime Minister. Voter turnout on Canadian indigenous reserves broke election records. Some communities in the riding (electoral district) of Kinora, which includes more than 40 First Nations, claimed a 270 percent increase in voter turnout. The reason given by countless indigenous people who turned out to vote was quite simple: they were fed up with Stephen Harper, the recently-ousted Canadian Prime Minister, and his conservative government's continued neglect of indigenous issues. Of the many grievances indigenous leaders harbored against the Harper administration, one of the most pressing was its failure to provide basic health services to indigenous communities and acknowledge the growing HIV/AIDS epidemic. Now with the election of Justin Trudeau as Prime Minister and his Liberal Party to Parliament, indigenous leaders are optimistic that their often ignored pleas for redress will be answered and that the issue of HIV in their communities will be tackled.

As expected of a developed country with a highly effective healthcare system, Canada has one of the lowest HIV/AIDS rates in the world, with less than 0.5 percent of Canadians living with the virus. However, a completely different reality exists within certain Canadian indigenous communities, where up to one in every 25 people has HIV, a rate higher than some sub-Saharan African countries. These rates are increasing: one in eight new Canadian cases are attributed to indigenous people, who only compose 3.8 percent of Canada's total population.

Art Zoccole, former President of the Canadian Aboriginal AIDS Network and current Executive Director of the Two Spirited People of the First Nations explained to *The Politic* that these numbers are disturbing. But, he added, data on ethnicity is limited because of overlap from multi-racial backgrounds. This means that the actual rate of HIV/AIDS in indigenous communities is almost certainly higher.

In addition to skyrocketing rates of HIV/AIDS transmission, Canadian indigenous reserves face numerous other health inequities. The rates of chlamydia among indigenous populations is seven times higher than the Canadian average, and the same is true of most other STIs.

Zoccole attributes the increased rates of these diseases to the higher incidence of unemployment, homelessness, and poor educational opportunities on reserves. The Center for Disease Control (CDC) provided similar information to *The Politic* with regards to American Indians and Alaskan Natives, saying that the higher risk of HIV infection in these communities is a direct result of the immense poverty afflicting many indigenous people.

Voter turnout on Canadian indigenous reserves broke records in this year's election, with some communities in the riding (electoral district) of Kinora, which includes more than 40 First Nations, claiming a 270% increase in voter turnout.

The health crisis on Canadian indigenous reserves is not solely a result of the Canadian government's neglect but also of historical abuse. Michaela Grey, Deputy Director of the Native American AIDS Prevention Center, explained, "A lot of our people still face historical trauma from being relocated off the reservation lands to other areas, and this is generations of historical trauma impacting them."

Just as in the United States, the Canadian government established Christian residential schools in the 19th and 20th centuries to "civilize the savages," which included beating and flogging those who spoke their indigenous language or practiced any religion besides Christianity. Although there were many allegations of "cultural genocide," these schools remained open and mandated attendance until as recently as the 1950s. Numerous reports by health organizations and personal testimonies by indigenous people have linked the egregious state of indigenous health to intergenerational trauma accrued through genocide, residential schools, and other factors like physical, sexual, and psychological abuse.

"Harper killed a lot of people in British Columbia."

WITH SUCH CLEAR EVIDENCE that Canadian indigenous communities continue to be neglected and abused, tribal leaders question why the conservative Harper administration still ignored them. Grand Chief Steward Phillip, President of the Union of British Columbia Indian Chiefs, recently criticized the Harper government on the Canadian Broadcasting Channel for its sidestepping the discussion about indigenous issues unless it explicitly served a particular interest – which was usually a land request from the oil industry. On the international stage, Harper declined to sign the United Nations Declaration on the Rights of Indigenous People (UNDRIP), calling it "aspirational," although 144 countries are signatories and only three other countries (Australia, New Zealand, and the United States) also refuse to sign it.



COUNTRIES THAT VOTED
AGAINST
THE U.N. DECLARATION
ON THE RIGHTS OF INDIGENOUS PEOPLE

In the realm of HIV/AIDS policy, Harper drew international criticism when he refused to implement the UNAIDS 90-90-90 target that seeks to ensure that by the year 2020 that 90% of people living with HIV will know their status, 90% of those diagnosed will receive antiretroviral therapy (ART), and 90% of those on ART will have viral suppression.

Julio Montaner, Director of the British Columbia Centre for Excellence in HIV/AIDS and former President of the International AIDS Society, lamented the decision and declared that Canada has the capacity and resources to implement the 90-90-90 target. Larkin articulated her grievances more bluntly: "Harper killed a lot of people in British Columbia."

In his election campaigns, Harper said he would slash welfare costs in half, and the results were devastating. Hordes of people lost their much-needed government benefits and disability status because of funding slashes, and Larkin personally witnessed the fatal consequences when one of her friends found no alternative to the loss but suicide. She also emphasized that the experiences on the ground in these communities are different from the national picture. Although the Canadian government is spending millions on HIV/AIDS, the vast majority is going to research organizations such as the one led by Montaner, leaving little to tangibly assist communities in need.

But Canada is not alone in its neglect of indigenous communities; its neighbor to the south has also been accused of maltreating its native communities.

Grey believes that the U.S. government is not doing enough to address health inequities affecting Native Americans, saying, "We need funding applied to native-specific organizations that actually do work in these communities."

First Nations peaceful protest at G20 Toronto Summit.





Prime Minister Justin Trudeau and Minister of Justice Jody Wilson-Raybould visit Hartley Bay in British Columbia in 2014 during Wilson-Raybould's campaign for the Vancouver Granville riding in Parliament. Hartley Bay is the home of the Gitga'at First Nation.

He also referenced the lack of cultural competency among government health workers. The CDC acknowledged these limitations, admitting that "because of confidentiality and quality-of-care concerns and a general distrust of the US government, some American Indians and Alaskan Natives may avoid Indian Health Service," the arm of the Department of Health and Human Services responsible for providing care to indigenous communities.

In Canada, Larkin believes that these confidentiality concerns are warranted. In small communities on reserves, tests are not always conducted in confidentiality, and she explained that the "auntie" of someone who works at the medical clinic could very well spread word of someone's status to the rest of the community. Fear of the repercussions prevents people from getting tested, since immense HIV stigmatization often leads to violence against and even expulsion of HIV+ individuals from their communities.

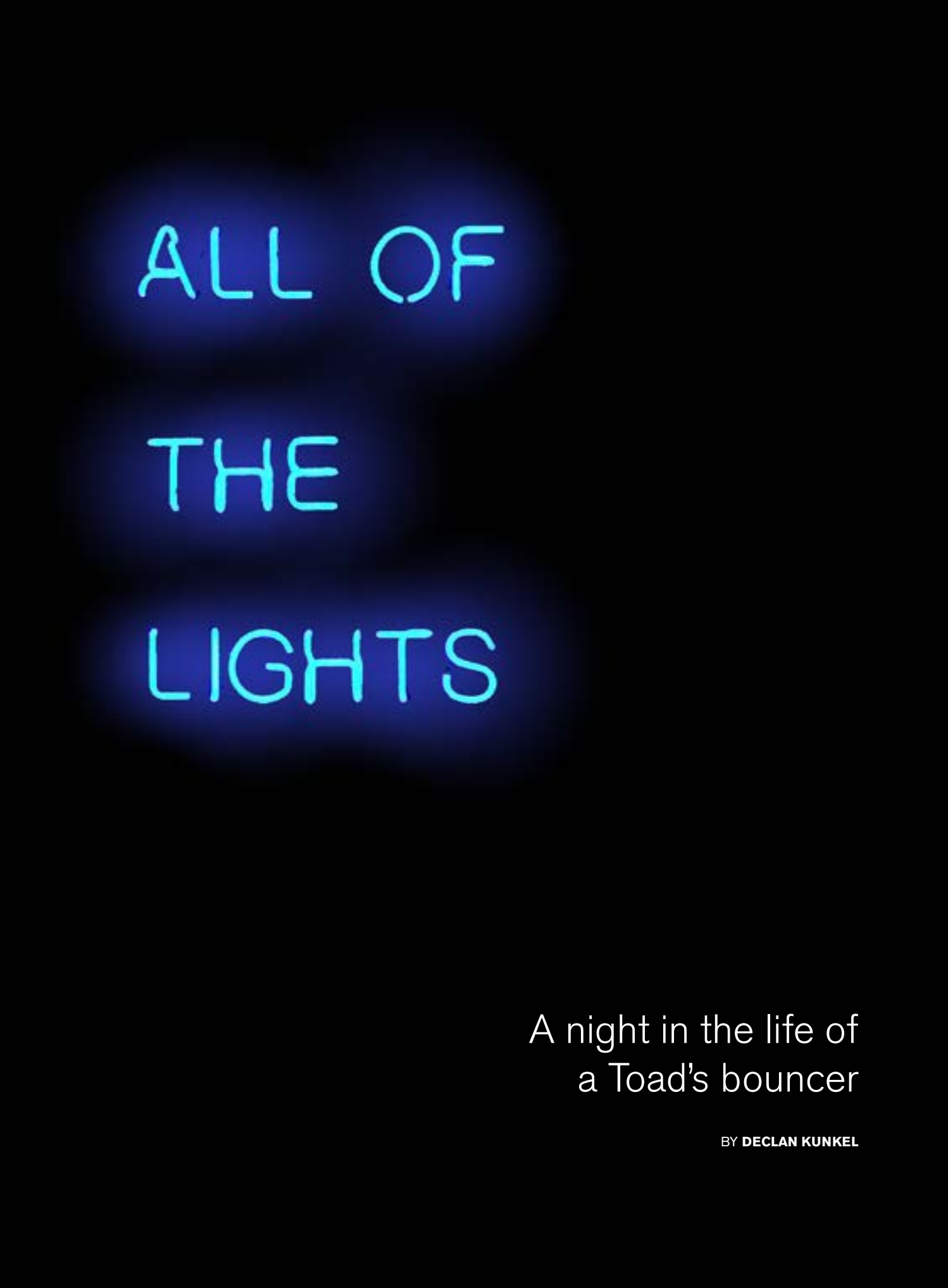
The dire situation facing Canadian indigenous communities then explains the record turnout at the polls in October's elections. In fact, turnout increased by so much that supplies of ballots on reserves across the country were running out. And these massive voter mobilization efforts were not made in vain; the new Parliament predominated by the Liberal Party is one of the most diverse, including ten indigenous representatives. Trudeau has also committed to diversity, making his cabinet the first to include an equal number of women and men. His cabinet is also culturally diverse, including Minister of Justice Jody Wilson-Raybould, a former Crown prosecutor and member of the First Nations.

Aboriginal women are three times more likely to be victims of a violent crime and four times more likely to be murdered than non-aboriginal women. 1,200 of these cases remain unsolved.

Wilson-Raybould's appointment is a part of Trudeau's broader campaign platform, which committed to building "a renewed relationship with indigenous peoples on a nation-to-nation basis." Trudeau also promised a government investigation into the countless cases of missing and murdered indigenous women and girls. According to Amnesty International, aboriginal women are three times more likely to be victims of a violent crime and four times more likely to be murdered than non-aboriginal women. A report by the Royal Canadian Mounted Police shows that 1,200 of these cases remain unsolved, although most agree the number is much higher. This statistic has drawn condemnation from the U.N. Human Rights Committee, which called it a "failure to provide adequate and effective responses to this issue."

Although Trudeau has yet to formally present a plan to address the HIV/AIDS epidemic in the First Nations, a spokeswoman for the Public Health Agency of Canada has assured *The Politic* that the government recognizes the problem and considers it a priority. Still, Trudeau's high-profile promises and the steps he has already taken to promote diversity and indigenous representation in politics have made health and indigenous leaders alike optimistic about the future after nearly a decade of the Conservative Party's rule.

Lamenting the previous administration's neglect, Zoccole said he was "very uncomfortable with the Conservatives." But his mood shifted to optimism when he explained that Trudeau's election is good "not only for HIV, but for the indigenous communities of Canada in total." Still, those who mourn the countless indigenous lives already lost to HIV/AIDS continue to demand immediate change, saying that the government's response is not nearly enough and that its reaction is already decades too late.



A night in the life of a Toad's bouncer

BY **DECLAN KUNKEL**

Most people don't associate Toad's Place with police lights. What first comes to mind are the strobes and the multicolored patterns of light that float across the dance floor. I am bathed in this wash when I get my first taste of Toad's: the fire doors fly open and a drunk man comes hurdling out, landing at my feet with a sickening crunch. In his wake follow several large men in their classic green uniforms: the Toad's bouncers.

Inside, the strobes keep flashing, but for the bouncers who keep Toad's secure, it is the police cruisers that light up the night, turning York Street into an ocean of red and blue. These men and women face difficult, ever changing conditions. But every night, they open and run a nightclub that is only one of thousands across the country.

It is a side of entertainment that few people see, in a popular industry where the clients are tipsy college students and the bosses are bands like U2, Waka Flocka, and The Plain White T's. To find out more about the life and times of running a nightclub, *The Politic* took to the streets – literally. Spending several nights in the nooks and crannies of Toad's Place, I became familiar with the people, faces, and staff members who make the nightclub bounce. One of the most visible jobs at Toad's is that of the bouncers. These men have perhaps the toughest job of all: ensuring the night not only runs smoothly, but safely.

The New Haven Police Department patrols Toad's regularly. Six officers were stationed on York Street the night before Halloween. The large crowds, the alcohol-induced fits of rage, and the loud, pumping music all combine to create a situation that can easily spin out of control. It is a testament to the bouncers that so few accidents occur.

The Politic spoke with several bouncers at Toad's Place, all of whom revealed a remarkable charisma and love for their job. The bouncers, who asked to have their names changed in this article for fear of repercussions at work, stated that their job was extremely difficult because no one realizes the bouncers are there to create a positive atmosphere.

"It's our job to make sure people have fun, safely" said Dave,* the head bouncer at Toad's, his beefy figure matching the prominent caricature of a bouncer. "In that respect, it is one of the best jobs in the world. Unfortunately, not everyone who goes to Toad's wants to have fun in a safe manner, and that's where things can get a little dicey," For Dave and his second in command, both college graduates, Toad's gives them a mental workout that they could not get anywhere else.

It is easy to see what he means by "dicey," though. The nights are usually unpredictable, to say the least. Several police officers who patrol Toad's recounted occasional violent brawls, but noted these have become noticeably less frequent. On Halloween night, several scuffles occurred. It took four police officers and several Toad's personnel to break up one particularly nasty fight, but only after blows had been traded and blood splattered the sidewalk and several of the bystanders.

I was exhausted after a night observing the bouncers. *The Politic* spoke with renowned security consultant Chris E. McGoey. He is a legend in the security industry, having served as an expert witness in hundreds of depositions and trials, and as a security consultant for high profile clients. He is the "guy to call" when one needs security advice. In an interview, McGoey clarified what bouncers actually do.

"A bouncer should not be a big burly guy who throws people out of a club," McGoey stated. "A bouncer is a professional observer." This echoes what Toad's Place staff said – they are on constant patrol, watching carefully for the first signs of trouble.

This sort of patrolling, McGoey stressed, really "makes or breaks" a night club. No one wants to attend a nightclub where they feel threatened

A BOUNCER IS A PROFESSIONAL OBSERVER.

NIGHTCLUBS EXIST IN LEGAL LIMBO, AN ILL-REGULATED AREA OF THE LAW WHERE CLUB OWNERS HAVE THE ULTIMATE RESPONSIBILITY FOR THE SAFETY OF THE CROWD.

Bouncers must locate and extinguish potential threats without attracting the attention of the crowd. Nothing ruins fun like watching someone be escorted out, so it is in the club's best interests to do this discreetly.

A good nightclub also has to attract the right crowd. This varies, however, depending on the venue's location and the ability of the staff. If a nightclub wants to attract a college crowd, they need more staff to keep people in line.

If the crowd is too violent, McGoey explained, "the club dies." In McGoey's experience, he said, bouncers avoid letting members of the public who would cause problems into the club in the first place. It is the bouncer's first priority to determine exactly who gains entry into a club and who does not. They strive to let in people who they think would have the most fun.

Nightclubs exist in legal limbo, an ill-regulated area of the law where club owners have the ultimate responsibility for the safety of the crowd. Yet they can obtain it in almost any way that they see fit. There is no national safety standard, since legislation enforcement varies state to state, which leads to clubs in certain states being much less safe than in others. This lawlessness further emphasizes the need for competent and daring bouncers, as they are, for all intents and purposes, the judge, jury, and prosecutor all rolled into one.

Being a bouncer is not a job that reflects the stereotype of beating people up and forcibly removing them from the premises. Bouncers do not have to be large men looking to bash heads. Some of the best industry bouncers are women, a fact that many nightclub patrons might find surprising. A bouncer must first be an advocate of the people at the club, protecting them from future dangers. It is not a job that rests on throwing people out of fire doors, but one that relies on a careful analysis of the club's liability. If the wrong person enters and drinks excessively, they become a danger to themselves and to others.

In between scanning the crowd for possible troublemakers and manning the door, a bouncer has time to reflect on the crowd.

Their unique viewpoint would make it very easy for them to become disillusioned with young people. But, Dave said, they don't. He continued, "I really enjoy letting other people have fun. That is one of my favorite things about this job." For him, the interaction with people makes the job worth the hours and hours of preparation, the loud music, and the unruly customers. McGoey touched on this, too, that nightclubs are places where people go for entertainment, and the actions that people do there should not be taken seriously. It is this almost intangible aspect that makes the bouncers return to the club after a long day at a full-time job, usually in an office or in construction. It is worth it to them, many with young children and wives at home, to put in a few extra hours for a job that is both entertaining and mentally fulfilling. It is an exhilarating job, one where the flashing lights and pumping music in the club combine to create something truly greater than the sum of its parts.

In an interview with *The Politic*, Sargent Rich Miller of the New Haven Police Department remarked that while nightclubs are fun. They have to be safe. "I really don't pass judgment on the attendees of nightclubs, they are just people having fun. It is my job and the job of the Toad's staff to ensure that everyone is safe while doing so," Miller said, chuckling.

Miller and his five officers almost immediately had to break up an altercation between a group of 4-5 college age males, who were freakishly dressed as clowns, head-butting, and exchanging blows—their white costumes polka-dotted with blood, sweat, and the grime found on the dance floor. As the officers jogged over, the men stopped fighting. Though each of the participants declined to comment, it was clear that, as McGoey stated, "An overdose of alcohol coupled with the excited atmosphere of the club" led to the altercation. This is not surprising; these sorts of drunken brawls are common. What is surprising, however, is that it was up to the police, not the bouncers, to break up the argument.

This, too, is likely because of liability issues. If a bouncer happens to hurt someone while breaking up a fight, the nightclub could be sued for assault. Legally speaking, McGoey stated, "The club should use police to remove customers." The police are trained to do so and more exempt from significant civil and criminal charges than a security officer or a bouncer. A bouncer's primary job is one of analysis, not of patron removal. This both limits liability and makes the club a safer place. Patrons are much more likely to listen to a uniformed officer than a bouncer, so few-

er fights become dangerous.

Always on patrol, the bouncers survey the dancing throng, reaching out and removing members that could negatively impact the experience of others. It is hard, Dave said, to "easily identify potential troublemakers given the dark atmosphere of the club, especially when it is overcapacity, like it is on many weekends."

Wednesday nights are the safest nights in the club, because of the large population of Yale students there for "Woads"—Wednesday Toad's. According to the bouncers, Yalies are both better behaved than a regular dance crowd and smaller in proportion to the amount of staff on hand.

Sargent Miller echoed this observation, stating, "Wednesday nights are quieter. It is most likely due to the fact that it is a fairly homogeneous crowd."

Miller, who only dispatches one or two officers on Wednesday, was surrounded by a group of five other police officers who were all engaged multiple times during my Woad's visit, dealing with rowdy students, locals, and passers-by.

We don't have to look far to see examples of nightclubs gone wrong. On Oct. 30, a nightclub in Bucharest hosted a charity concert that quickly spiraled out of control. A band's use of pyrotechnics in close proximity to the crowd caused a panic, and a stampede formed, killing 32 and wounding dozens more. Situations like these are why bouncers are employed in the United States—to protect a nightclub's patrons from out of control partiers.

A nightclub is often portrayed as being inhabited by large male bouncers who are quick to roughhouse customers and patrons for little reason. This perception could not be further from the truth. A nightclub is the domain of incredibly talented and analytic minds who are determined to preserve both fun and safety.

The lights of Toad's flash brightly, the ground shakes with the bass, and the treble shrieks through the air as the crowd inside jumps to the rhythm of the music. On the perimeter, incredibly calculating men and women scan and listen as the red and blue lights wash over them again and again. These men and women are the judges, and the nightclub is their court. They are the enforcers of the law and the resolute guardians of responsibility in a place where little can be found. Their reign is sometimes less-than-perfect, but it gets the job done.

PHOTO BY JOEY YE



Better Have My Money

Spotify and the New Streaming Economy

Created by: **Gabrielle Deutch**

PLAY FOLLOW

Any girl who was a teenager at end of the nineties or in the early 2000s certainly remembers "What A Girl Wants," Christina Aguilera's emotion-tinged hit single that topped the Billboard Hot 100 and remained there for 24 weeks. With that song and "Genie in A Bottle," the 19-year-old Aguilera became an international superstar. In 1999 she released an album that would go platinum eight times; in 2004 she won a Grammy award for "Beautiful" and immediately gained the lavish lifestyle of the modern celebrity—from ordinary teen to award shows, stilettos, a self-named fragrance, and a multi-million dollar mansion in Beverly Hills.

But most people who purchased Aguilera's eponymous first album or attended one of her sold-out concerts were not aware of one important fact: Aguilera did not write the songs herself. While Aguilera became wealthy through live performances and album and merchandise sales, Shelly Peiken,

who co-wrote "What A Girl Wants," stayed at home and wrote more songs for other performers. There is nothing unusual about Aguilera and Peiken's arrangement. This was not a case of the lesser-known half of a duo getting duped while the other gained international stardom. This is just how the music industry works.

Peiken, a fifty-something Los Angeles resident and lifelong songwriter, has written hundreds of songs for multiple chart-topping artists: Aguilera, the Backstreet Boys, Jessie J, and Demi Lovato, among others. If you are not involved in the music industry, you probably haven't heard of Peiken, and she knows that. Peiken comes from what might be the last generation of songwriters who can make a living off this skill. Staying in the background writing songs without any of the fame or recognition might not seem like a great gig, but for writers like Peiken, it's their passion.

Most recording artists do not write their own music. All songs, contain two separate copyrights: one for the recorded version, and another for the written material (the musical notes, the words, and so on). Complications arise when it comes to the payment of royalties for purchased music (digital or physical CDs)—or as is more often the case today, when it comes to streamed music. The royalties that artists and songwriters receive when their songs are purchased or played on this new medium vary across the platforms, and it is often barely enough to sustain a career. For recording artists, though, there is the prospect of concert ticket sales and merchandise; for the songwriters, the only profit comes from the purchase or streaming music. Copyright law has not kept up with the advent of digital streaming services such as Pandora, Spotify, and Apple Music. This has culminated in a multi-faceted battle in Congress and America's courts. To simplify the issue, the so-called "creative community"—consisting of record labels, recording artists, and songwriters—has been pitted against the tech industry of digital streaming services.

Songwriters' revenue is largely regulated by the federal government. The legislation that governs their revenue streams was created during World War II and last amended in 2001, even before the invention of the iPod, let alone streaming services. This legislation was created to regulate royalties awarded to songwriters from vinyl records and the radio; its inability to keep up with the music industry has paved the way for streaming services to enter the market. Since their existence is relatively new, old-fashioned copyright law does not apply to them. It was easy to take advantage of an outdated law and create a business model that maximized profits to the streaming services by limiting the royalties awarded to songwriters and artists.

"The less they have to pay to songwriters, to record labels, the more profit they can keep from ad sales or subscriptions," Peiken told *The Poli-*



"People cannot support themselves with songwriting alone, like we used to do. If my song streamed 10 million times, I would most likely make a few thousand dollars."

Shelly Peiken



"All About That Bass" had been streamed 178 million times on Spotify in roughly the first 15 months following its release in June 2014.

Kadish was paid $5,675.

tic. Spotify pays songwriters between $0.006 and $0.0084 for one stream of a song for which they hold rights.

"People cannot support themselves with songwriting alone like we used to do," Peiken added with a note of remorse—and disdain. From the sale of eight million copies of Aguilera's debut album with Peiken's hit, Peiken took home $240,000. "If my song streamed ten million times," she estimated, "I would most likely make a few thousand dollars."

Enter Congress. We tend to equate Congress with highly polarized (and publicized) partisan battles. We rarely expect members of Congress to put aside their partisan prejudices and vote based on which legislation really speaks to them, but this is indeed how members of Congress often approach the issue of performers' rights.

THE FACE OF the music industry is changing. This is indisputable. Pandora Radio, the platform that lets users create customized radio stations based on a song or artist they like, started in 2000. Spotify, the immensely popular music-streaming service, emerged in Sweden in 2008 and entered the American market in 2011. Pandora has 250 million users, 80 million of which actively use its services; Spotify has 75 million users. There is no doubt that people are no longer paying to own music when it is all available on Spotify, either free (with ads) or for a Premium service at $9.99 a month—the cost of only seven and a half songs on iTunes. The Recording Industry Association of America (RIAA) changed its standards of determining which songs can win Gold or Platinum awards to include not just downloads but "streams" as well. (500,000 downloads and/or streams lead to Gold certification; 1,000,000 downloads and/or streams lead to Platinum certification.)

But while these services deliver a streamlined performance and easy music access to users, what they offer to musicians—songwriters especially—is murky at best. Alec French, principal at Thorsen French Advocacy, a lobbying and communications firm, represents the American Society of Composers, Authors, and Publishers (ASCAP), a major representative of creators.

"The problem [with streaming services] is that what they pay songwriters is shockingly low," French told *The Politic*. French gave the example of Kevin Kadish, co-writer of "All About That Bass" by Meghan Trainor. According to French, Pandora pays songwriters $100 for every million streams. "All About that Bass" had been streamed 178 million times on Spotify in roughly the first 15 months following its release in June 2014. Kadish was paid just $5,675. Even if Kadish wrote several other songs that year that reached the popularity of Trainor's summer hit, he would still barely make a living.

Shelly Peiken deems this an example of how songwriting "has become unsustainable financially." The creative community agrees that when a songwriter produces a work that goes platinum nine times and cannot live off this work alone, something must change.

THE ISSUE IS MORE complicated than this depiction of the big, bad, profit-driven streaming services versus the under-appreciated underdogs in the creative community. Spotify has an entire website (aptly named Spotify Artists) devoted to explaining its royalty policies and their benefits to artists. It shifts the argument

to focus not on how Spotify's payouts compare to what songwriters used to receive from album sales; rather, it asserts that by paying artists and songwriters at all it is benefitting the music industry by bringing in users who otherwise would pirate music for free through illegal channels. Its message is that is has co-opted a failing music industry whose most important revenue streams no longer exist.

On Capitol Hill, lobbyists for these issues represent a wide array of organizations, companies, and people. The National Music Publishers Association represents the songwriters—the ones who write music but do not perform it—and the ASCAP, which supports the Songwriters' Equity Act. This legislation would change just two statutes of the existing copyright law by requiring courts to look at consent decrees. Right now, courts that set the royalty rate for songwriters are not allowed to view evidence showing the market rate of songwriters' products rather than the rate artificially set by the federal government.

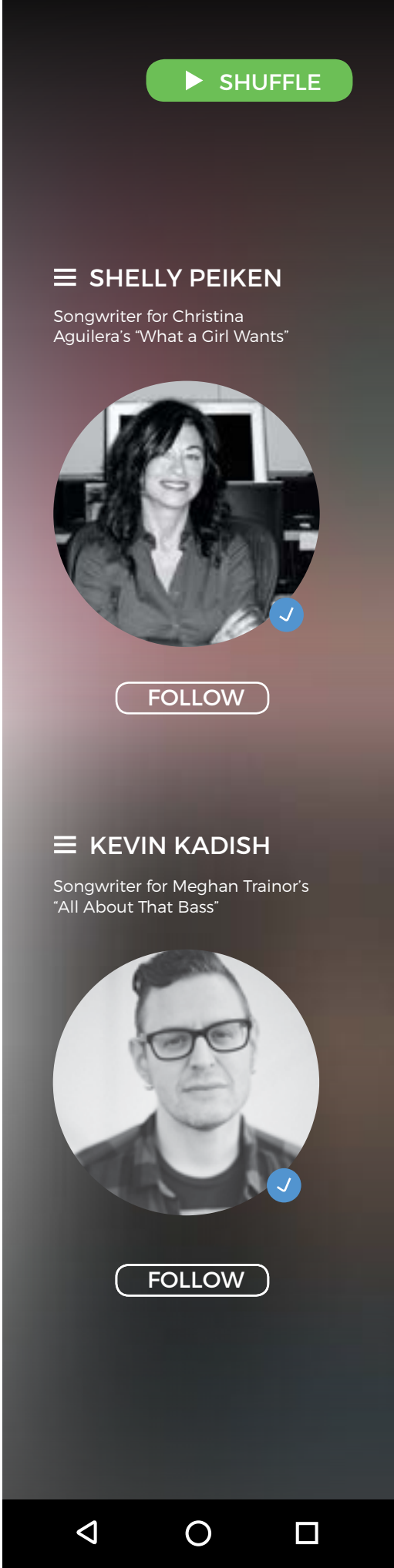
Then there is the recording industry, which is typically on the same side as the songwriters (the "creative community"), but which has different priorities. The recording industry is represented by the RIAA and the Recording Academy, best known for the Grammy awards, and for bringing popular artists to Capitol Hill to meet with legislators. Though they also support the Songwriters' Equity Act, their focus is on the Fair Play, Fair Pay Act. This bill would target another entity, the broadcasters, by making radio stations pay royalties to the recording artists when their songs are played.

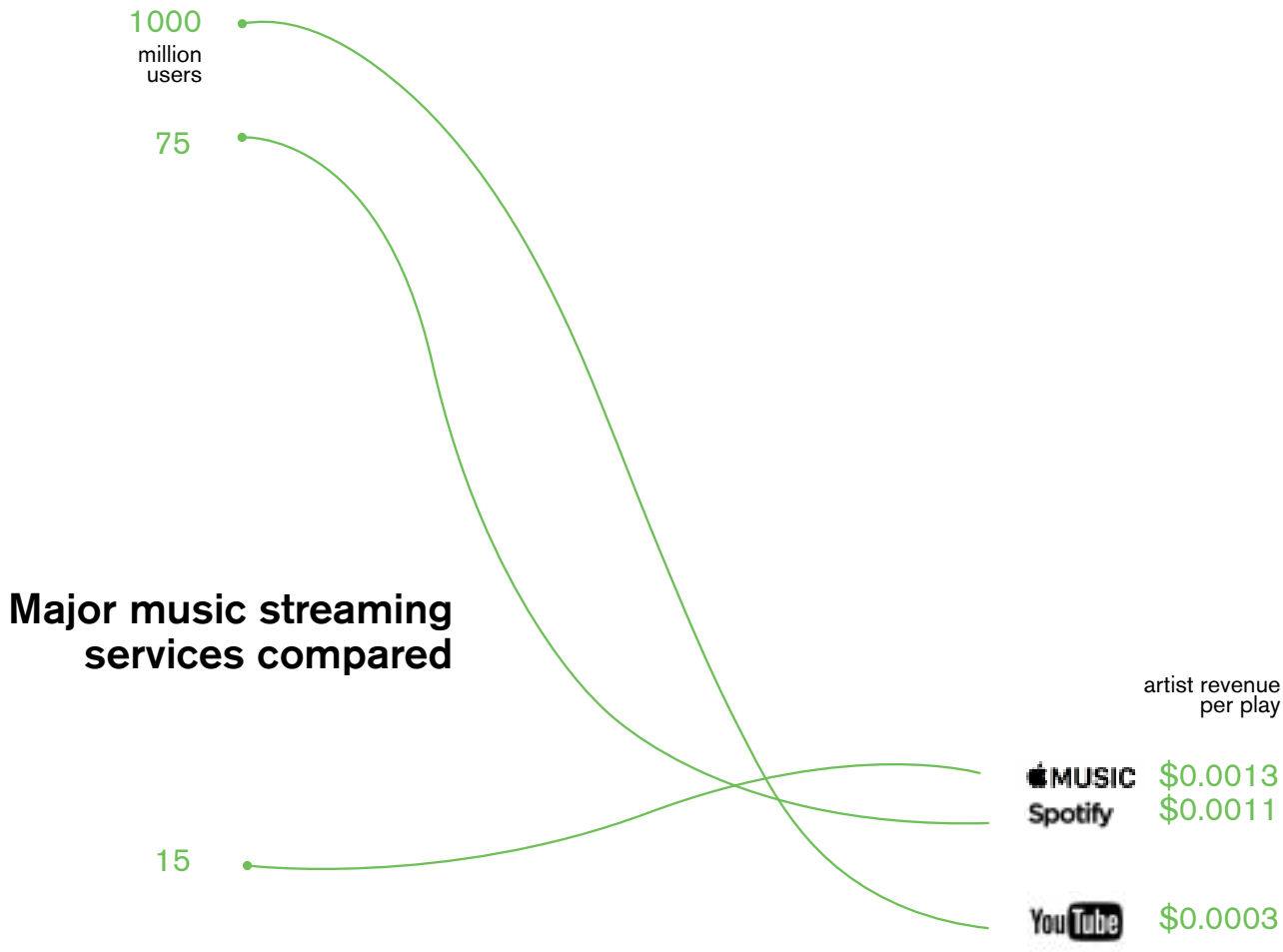
Then there are the streaming giants. Pandora Radio and Spotify both have lobbying contingents on the Hill, and they are joined by Google, which owns YouTube, a streaming service of a different kind. DiMA, the Digital Music Association, represents their interests on the Hill as well.

Another set of interests also comes into play: broadcasters—the radio industry. The National Association of Broadcasters (NAB) is an advocacy organization that represents 7000 radio stations and 1200 TV stations. The NAB is currently promoting the Local Radio Freedom Act (LRFA) in direct opposition to the Fair Play, Fair Pay Act; the LRFA would not allow Congress to pass laws creating any new royalties to be imposed on radio stations.The LRFA just gained support from its 219th member of Congress, meaning it has passed the threshold to securing a congressional majority, effectively ending the chance of the passage of the Fair Play, Fair Pay Act.

The connections between these organizations are tenuous. Sometimes the songwriters side with the recording industry against the streaming services. Other times the recording industry chooses to fight the broadcasters, with the streaming services backing them up. Then the broadcasters fight back, claiming the recording industry's frustration is misplaced. And then songwriters and the recording artists can disagree. Against all expectations, these policy battles are not Democrat vs. Republican.

FEW POLITICIANS WHO run for office feature support for the tech industry or the creative community strongly in their platform, perhaps unless they represent Silicon Valley or Hollywood. It is not a partisan issue, although it is a divisive one. There is no single factor that may predispose a member of Congress to choose the LRFA over the Fair Play, Fair Pay Act or to co-sponsor the





Songwriters' Equity Act. The way these groups reach lawmakers is by meeting with them personally and explaining the meaning of the cause. In a way, it brings politics back to simpler times—it really is a battle of hearts and minds. Tell a congressperson your story, and if it resonates with her, then she is one step closer to supporting your cause.

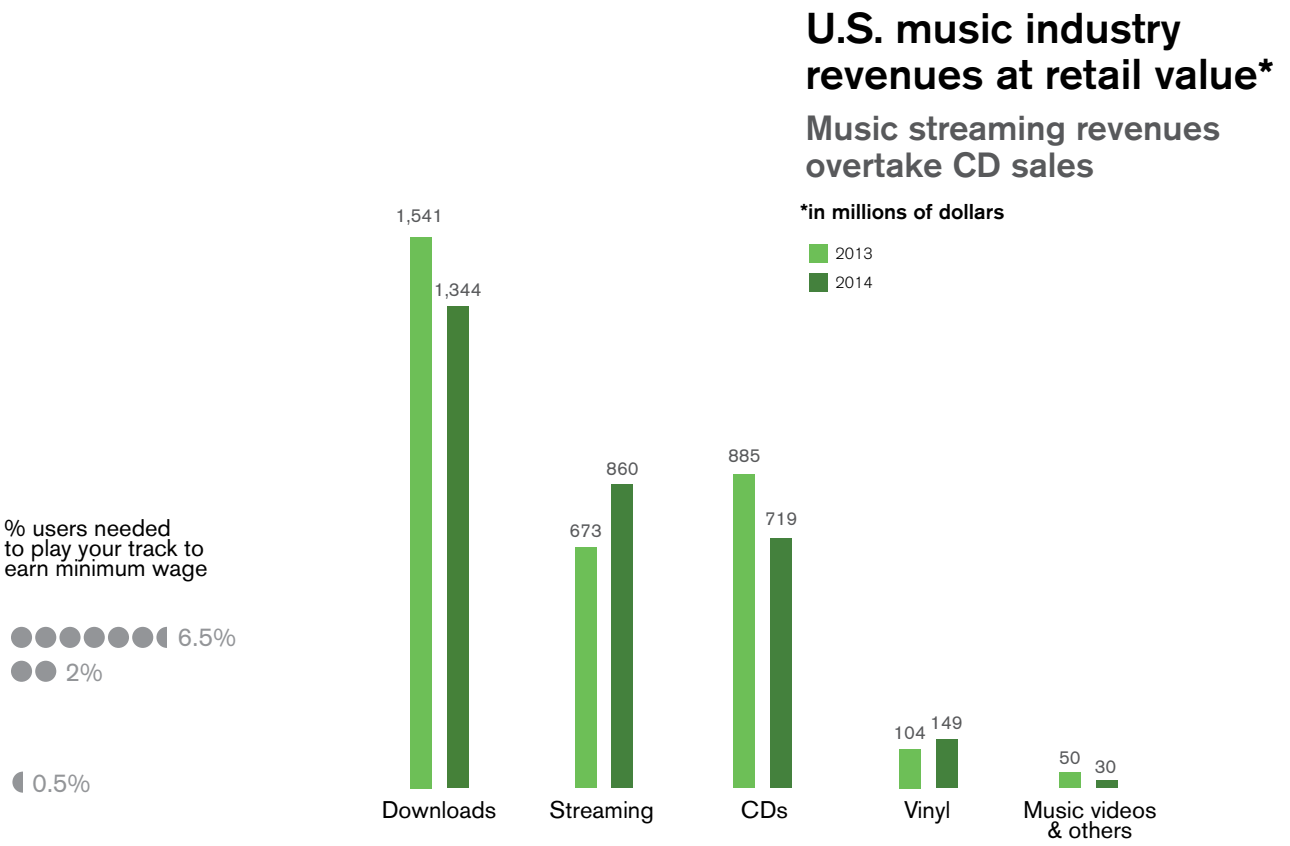
For Shelly Peiken, who is not a career lobbyist like the advocacy gurus at the Recording Academy or like Alec French, or like the big teams assembled by Pandora, this is difficult. Peiken can crank out dozens of hit songs a year and befriend pop stars, but meeting with the legislators who decide whether or not she can make a living is much harder.

"Somebody else set up our meetings. I'm pretty new at this. It's not my forte. I'm good at three minute songs, but I feel this is important," Peiken admitted. Her husband Adam Gorgoni, film and TV composer and fellow advocate, agreed.

"They have a certain amount of political capital," Gorgoni added, though he admitted that he and Peiken only spoke with people already friendly to their cause. He and Peiken are new at lobbying; "we haven't really gotten to that point yet," Gorgoni acknowledged, in reference to the uncommitted members of Congress who might be harder to convince.

What it comes down to is a race, a battle to see who can make the best case and who can do it fastest. Right now, as technology evolves, politicians are still forming their opinions. Every group with a stake in the matter is working to create the best strategy to promote their message and reach as many people as they can. Dennis Wharton, Executive Vice President of Communications at the NAB, understands the importance of this hearts-and-minds strategy. Right now, his cause is "winning" with a majority of votes in Congress committed to the Local Radio Freedom Act.

"We simply make the case to whomever will listen to us," Wharton told *The Politic*, referring to the NAB-backed bill that would not allow any increase of royalties imposed on radio stations. "We make our case and ask them to support us."



TODAY, YOUNG PEOPLE not only expect cheap, easily accessible music, but they also feel it is inevitable. This is how the industry has evolved, and when young people have known nothing else, it cannot necessarily be expected that they, too, feel frustrated by the relatively limited, and perhaps unfair, royalties awarded to songwriters and recording artists. Tom Marano '16, former chair of Yale's Spring Fling Committee, was tasked with contacting artists' managers and arranging their performances. He, like many other college students and young people, has switched from iTunes to Spotify.

"Many people would rather pay the monthly cost and benefit for the ease and convenience of Spotify," he told *The Politic*, rather than illegally downloading music. But Marano also notes that he, as a casual listener, is not aware of the challenges Spotify might pose to songwriters; and, he admits, "so long as I don't feel the quality of music is suffering as a result of this fact, this is not something I consider." Marano is likely not alone these beliefs.

Shelly Peiken's "What A Girl Wants" came at the tail end of the CD age, and because of that, she could make an upper-middle-class living as a songwriter alone. People cannot do that anymore, for better or for worse. Spotify and Pandora do, after all, bring music to the masses; perhaps more people hear Peiken's compositions now. But Peiken ends her aforementioned lobbying sessions with a targeted indictment on lawmakers and the general public for the acceptance of the status quo—the inequitable compensation songwriters receive.

"You are making so much money from my content," she tells people, pleadingly, "that it's so hypocritical to say streaming should be free." For Peiken and others, the fate of music is not sealed; there is a right side of this history, and she plans to work to ensure that streaming services do not escape scrutiny and profit from her work without letting her profit as well. She may be a political amateur, but she knows how to get straight to the heart of the issues, and she is not afraid to speak her truth: "If there weren't songs there wouldn't be streaming services."

Mother Tongue

The Navajo Nation Revives Diné

BY **SAMANTHA CANAVÁ**

Creosote, cholla, and palo-verde trees claim the American Southwest. A handful of interstates cut through horizons of sprawling, wispy vegetation. T'sah (sagebrush), K'ish (alder), and Tsédédééh (four o'clocks) bask in the desert sun. The eternal skyline is sporadically interrupted by jagged mountains of magma-hardened rock that shift from violet to russet-gold at sunset. This is the beautiful nizhóní, the heartland of the Navajo Nation: the place where Tiffany Lee, Associate Director of Navajo Studies at the University of New Mexico, grew up surrounded by the sounds of Diné, the language of the Navajo.

"To my mother and all of my aunts and uncles, Navajo was their first and only language," she told *The Politic*.

Though the language was integral to her home, culture, and identity, Lee wasn't raised fluent. She is not unique. Even the President of the Navajo Nation, Russell Begaye, like Lee, is not a native Diné speaker. Because so many Navajo are not fluent, in July 2015, the Navajo Nation voted to loosen the language requirements for its top leaders.

The decision to drop the fluency requirement was controversial. Outsiders invariably interpreted the decision as a manifestation of Native American assimilation. The verdict was met with opposition from within the Navajo Nation too. The Navajo government operates predominantly in English, but elders who favor Navajo tradition held that the president ought to be fluent in Diné in order to better communicate with the council and courts.

However, the bulk of the Navajo constituency, especially Navajo youth, do not see the verdict as evidence of Diné's diminished significance. Nor do they see it as the Americanization of Navajo people. Rather, they attest that the policy enables them to elect a leader who better represents the contemporary Navajo tribe: a modernized, largely non-fluent demographic.

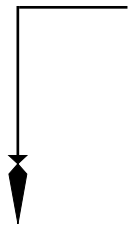
According to a 2011 American Community Survey, of the 370,000 Navajo in the United States, only about 169,000 speak Diné. Reed Bobroff '16, a self-taught Diné speaker, explained that the fluency requirement for the Navajo President barred qualified representatives from running.

"Having a fluency requirement in place can leave out a large constituency and exclude qualified leaders… [non-Diné speakers] shouldn't be dis-

criminated against," Bobroff told *The Politic*. But, he added, "Language acquisition is something that everyone should strive for."

The current Navajo president is striving to learn the language. President Begaye, a UCLA graduate, is not an aloof Americanized leader. His lack of fluency does not mean that he devalues Diné. Rather, he is an emblem of a non-fluent generation, and his efforts to attain fluency are encouraging other young Navajo to do the same.

Bobroff added that the decision is an inclusive effort to acknowledge the complex history that created generational language divides among the Navajo. The decline in native Diné speakers is a result of the Navajo people's complex history of language discrimination.



The decline in native Diné speakers is a result of the Navajo people's complex history of language discrimination.

For example, Lee's grandmother was one of many Navajo children subjected to the discriminatory practices of boarding schools established throughout the Southwest in the early 1900s. These schools would often chastise pupils for using Navajo terms or mannerisms in favor of more American habits, ostensibly to avoid discrimination later on in life. The Navajo of this generation, subjected to such pressures, would return to their communities with improved English and the notion that speaking English alone was the path to prosperity.

"They changed our people's mindset about their own language and being successful in America," Lee said.

Other public policies accelerated the numerical decline of Diné speakers. Signed by President Lyndon B. Johnson, the Bilingual Act of 1968 provided funding for non-native English speaking students and launched programs that would accelerate English acquisition. A major effect of these efforts was a great cultural loss for the Navajo. Advocacy groups such as the AIM (American Indian Movement) joined in the Civil Rights Movement a few years later, fighting to combat the negative results of such legislation.

The Navajo Nation officially reacted to the decline of Diné in 1984, when the Navajo Council introduced its own legislation requiring that Navajo instruction be available and comprehensive at all primary schools on the reservation.

After six years, Congress followed suit, passing the Native American Languages Act of 1990. This bill was the first to establish the preservation, protection, and promotion of the "rights and freedom of Native Americans to use, practice, and develop Native American language." These rights were not to be "restricted in any public proceeding, including publicly supported education programs."

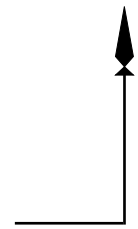
The legislation, while a victory for the rights of Native Diné speakers, still prompted a new wave of English-only campaigns, such as Arizona's English for the Children campaign (led by mostly white Arizonans), that supported the anti-bilingual Proposition 203 as late as 2001.

The Navajo nation continued to face English-only pressures, especially in the workplace. After finding jobs on the outer reaches of the reservation or in towns and cities on its periphery, urbanized Navajo continued to face discrimination. Such pressures compelled them to raise their children to speak English as their first language.

Despite legislation like the Native American Languages Act, areas of inequality remain ingrained in federal policy, with enduring effects on the Nation. Discrimination, felt over decades from generation to generation, coupled with scarce resources for learning Diné in urban settings and schools, created the tremendous generational gaps in fluency that exist in the Navajo community today.

Despite the current divides in Diné fluency, both Lee and Shelly Lowe, executive director of Harvard's Native American Program, are optimistic about the future of Diné and Navajo revitalization efforts.

Despite the current divides in Diné fluency, both Lee and Sherry Lowe are optimistic about the future of Diné.



"Modernization and strong Navajo identity are not mutually

exclusive," Lowe told *The Politic*.

Both Lee and Lowe have observed overwhelmingly positive trends in Navajo cultural and linguistic reclamation, and identify further preservation and expansion of Diné as a communal responsibility.

"Attitudes do change over time. Some youths may have been raised at a distance but over time as they matured, many seem to have returned to a sense of pride and desire for connection with their Navajo identities," Lee told *The Politic*.

The tribe has developed numerous Diné immersion programs to supplement Navajo studies at primary schools throughout the reservation, including Dream Diné, Native American Community Academy (NACA) and Diné College, a tribal community college that offers an associate's degree in Navajo.

Grants from the Bureau of Indian Affairs currently fund Navajo language programs – including testing and curricula – in all 32 schools on the reservation. Because immersion programs tend to target elementary school students on the reservation, some people have called for outreach geared towards young adults just outside the reservation. The urban generation now finishing high school, attending college, or starting their own families has had fewer opportunities to rediscover Diné. The pressure is high today because eighty percent of self-identified Navajo live off of the Navajo Nation Reservation.

Bobroff told *The Politic*, "Most [Navajo youth] are now urban...we have more people living in cities than on reservations."

Irrevocably intertwined with tribal values and the Navajo way of life, Diné follows few patterns. The complex design of the language is what made the heroic Navajo Code Talkers of World War II so successful – the Japanese military was unable to decipher Diné. For Navajo who take the initiative to rediscover Diné, self-study can be a similarly arduous task.

A recent Yale graduate from Albuquerque, New Mexico, Dineé Dorame '15, undertook the challenge. While at Yale, she decided to build on her lackluster high school Diné program. Having already grappled with the difficulties of learning the complex language, she designed her own Directed Independent Language Study (DILS) program in Diné. By Skyping a professor at the University of New Mexico (UNM) from her dorm room and practicing with another Navajo student, Dorame was able to engage with implicit cultural cues, values, and ideals—necessary because, as she said, "Our language is embedded in these things."

Dorame sees her desire to become fluent and reconnect with her Navajo identity reflected in many younger Navajo. She warns against mislabeling her Navajo peers and acquaintances as disinterested in their heritage merely for "not having the resources or opportunity to learn the language when [they] were so willing to do so."

Self-taught Navajo speakers such as Dorame and Bobroff commend the Nation's current language revitalization programs and suggest expanding the programs to more Southwestern cities and towns. They also suggested that more of these initiatives should target middle and high school students wanting to strengthen their sense of identity through language acquisition, just as they did while learning Diné at Yale.

"If you understand the language of your people it gives you access to prayer and ceremony in a way that falls through the cracks with translation," Bobroff explained.

Their enthusiasm reflects President Begaye's passion to become fluent. The push towards fluency among the Navajo is not diminishing, but increasing – a clear sign that Diné is not going anywhere, but will remain vital to the Navajo identity and way of life.



FINE CHINA

but at what cost?

BY **SARAH DONILON**

On October 18, 1860, British forces burned the Old Summer Palace (圆明园) to the ground. The palace, located northwest of Beijing, was built under emperor Qianlong in the second half of the 18th century. The lakes, gardens and ornately decorated buildings on the 860-acre grounds were powerful symbols of Chinese rule.

Nine days earlier, British and French forces had looted the palace and the precious art it housed. The British army returned without the French to destroy the Old Summer Palace. Greg M. Thomas, professor of art history at the University of Hong Kong, explained that the French forces did not take part in the destruction because they believed it was "an important cultural monument and its destruction exceeded the military aims of the mission."

The British had no qualms razing the palace. The ambassador wanted to punish the emperor for the death of European prisoners and to scare the emperor into fulfilling the terms of the 1858 Treaty of Tianjin. For three days, the British army destroyed the palace complex. The Chinese emperor surrendered, and the Second Opium War drew to a close.

The Old Summer Palace is a somber reminder of Western subjugation. This foreign invasion led by the British in the 19th century began China's "century of humiliation."

Nearly two centuries later, British Chancellor George Osborne declared at the Shanghai Stock Exchange, "Let's stick together to make Britain China's best partner in the West. Let's stick together and create a golden decade for both of our countries."

As President Xi Jinping sat between Kate Middleton and Queen Elizabeth II at a banquet in Buckingham Palace, the memory of the Old Summer Palace seemed far away.

That is not to say that the Chinese forget the past. Kurt Campbell, CEO of The Asia Group, dealt closely with Chinese officials during his tenure as Assistant Secretary of State for East Asian and Pacific Affairs.

"One of the party story lines that has been effectively and relentlessly promulgated by Xi Jinping and his team is the idea of the 'the century of humiliation,'" said Campbell.

"It is undeniable," he continued, "that at the core of that is frankly British efforts and Britain's role in various aspects of China's bad years, bad century—the Opium trade, the division of Hong Kong and of new territories." Nevertheless, Campbell explained, "somehow they disentangle that long history with that of modern Britain."

The turbulent history may even unite the countries. Odd Arne Westad, S.T. Professor of U.S.-Asia Relations at Harvard University clarified, "in a strange kind of way, the conflicted history creates a sort of link between the two countries."

Though there remains resentment in China towards British imperialism, Westad believes there is also "a certain sense of closeness because many Chinese know more about Britain than they know about many other Western countries."

If any resentment exists, it has been put aside in their new venture. There is certainly good reason for both China and the UK to cooperate with each other.

For China, engaging with Western countries is an essential part of its development. Westad explained, "there are still an enormous number of poor people in China, and the economy is slowing down…the more interaction that occurs with the outside world commercially, the better the regime sees this for China."

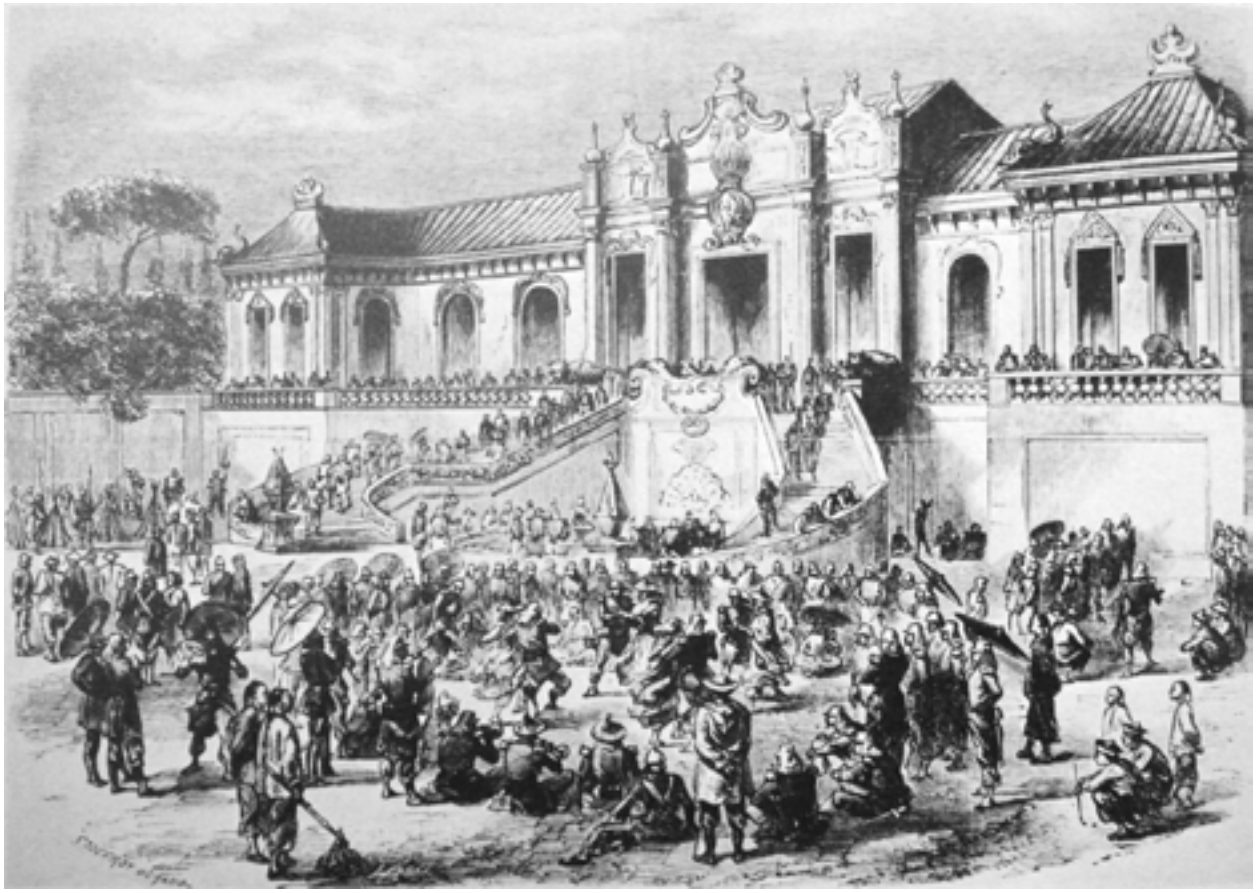
From the British perspective, engagement with China means investment and job opportunities. Xi's state visit to the UK this October was the first Chinese presidential visit in ten years. UK Prime Minister David Cameron announced that Xi's week in the UK had secured "up to forty billion pounds" worth of trade deals. It is no wonder that Osborne has said that Britain should "run towards China." Included in the agreement was everything from a six billion pound deal with a Chinese business in a new British nuclear power plant to plans for a Legoland park in Shanghai.

In addition to stronger economic ties, the British government has pledged seven million pounds to fund a cultural exchange program with China. The UK will send precious landscape paintings from the Tate, and handwritten manuscripts by Shakespeare and Jane Austen to be put on display. The program will also fund performances from the Shakespeare Globe and the National Theatre of Great Britain in China.

Nick Machaud, Director of Arts and Creative Industry of the British Council China, believes that culture is "the starting point for conversation, as it provides an insight into the aspirations, expressions and even the popular frustrations of a country."

The British government advertises the cultural exchange program as a means to forging a closer economic relationship with China.

"We know that the more cultural interactions people have with a country, the more likely they are to trust that country. The more they trust that country, the more likely they will want to visit, study or do business with the UK," explained Machaud.



During the looting of the Old Summer Palace, one British general spotted a small white Pekingese dog, which he proudly brought home to gift to Queen Victoria. The queen affectionately named the dog Looty, for the manner in which he came to England.

Though the new cultural exchange program may be an important step in building trust between the two countries, it will not be the first cultural interaction Britain has had with China.

"It all started with porcelain," said Nixi Cura '88, Programme Director of Arts of China at Christie's Education, an arts education program run through Christie's Auction House in London. Cura explained porcelain china first came to Britain when the Dutch plundered Spanish and Portuguese ships that carried products from China and sold the items at auctions in Europe. Porcelain was always on the ships because it held spices and tea, for which there was huge demand in Europe.

Many other Chinese objects arrived in Britain for the first time after military looting. Nick Pearce, professor at the University of Glasgow and Head of the School of Culture and Creative Arts noted, "a lot of objects which hadn't been seen in the UK before came back with the troops."

After the destruction of the Old Summer Palace, for example, "thousands of undocumented art objects were carried home by soldiers and have remained in private collections, occasionally appearing for sale at auctions," recounted Thomas.

During the looting of the Old Summer Palace, one British general spotted a small white Pekingese dog, which he proudly brought home to gift to Queen Victoria. The queen affectionately named the dog Looty, for the manner in which he came to England. For Stacey Pierson, professor of Chinese ceramics at the University of London, Looty represents British attitudes towards China in the 18th century.

"On the one hand it is patronizing, but on the other it shows desire for Chinese things," she reflected. The increased flow of Chinese objects to Britain created a desire and appreciation for them.

"It begins with conflict," Pearce explained, "but it does develop into a genuine interest on the part of people who collect these objects to gain a greater understanding of Chinese artistic traditions."

This interest in Chinese art resulted in Britain being home to many of the best Chinese art collections in the world. These collections in Britain today "derive primarily from legitimate and avid art collecting conducted over the past three centuries," said Thomas.

The incorporation of porcelain china into British culture "was the turning point for China." The people still seemed exotic, but the goods seemed less exotic.

The British developed a taste for Chinese objects. Stacey Sloboda, author of Chinoserie and associate professor of art history at Southern Illinois University, said, "there was a huge fashion" for Chinese goods in the 18th century. The trend, Sloboda explained, had "a lot to do with emerging concepts of that it means to be international." These objects "helped British consumers understand their relationship to the wider world," Sloboda described. John Finlay (PhD '11), independent Chinese art scholar, remarked, "it becomes sort of an emblem of taste, of culture."

Even King George IV bought Chinese porcelains in the 19th century to decorate Buckingham Palace, noted Thomas.

Porcelain became a staple of British culture through tea drinking. Pierson said that the incorporation of porcelain china into British culture was the "turning point for China, itself still seeming exotic. The people still seemed exotic, but the goods seemed less exotic."

Even today, the divide between China the place and Chinese goods exists. Take, for example, a blue and white Ming dynasty vase. Pierson believes that a British person would not immediately associate it with China because it is so common in the UK, but a Chinese person still seems foreign.

The new arts exchange program does not only aim to make Chinese and British culture less foreign. It is also part of a larger effort led by David Cameron to court China.

The past several years have marked a significant shift in British policy towards the Chinese government. In 2012, Chinese officials refused to meet with British ministers after Cameron sat down with the Dalai Lama in London. The Chinese government's tension with the Dalai Lama stems from competing claims for control of Tibet. The Chinese government maintains that Tibet is part of China, whereas the Dalai Lama advocates Tibetan self-rule.

Campbell explained that after the British met with the Dalai Lama and spoke out on human rights, the Chinese government "immediately put Great Britain in the penalty block, isolated them and criticized them."

"What that led to," Campbell continued, "was a whole scale internal re-examination of China policy, and the government, for a variety of reasons—at the top of the list are commercial reasons—has decided that they're going to do everything possible to make the relationship between Great Britain and China as strong as possible."

The British Prime Minister has also received widespread criticism in the UK for his accommodation of

the Chinese. In October, Labour Party Member of Parliament Paul Flynn said in Parliament that the government is acting "like a suppliant fawning spaniel that licks that hand that beats it."

Cameron has since declined to meet with the Dalai Lama. This year, the Dalai Lama slated Cameron's shifting loyalties in an interview with Spectator magazine, lamenting, "Money, money, money. That's what this is about. Where is morality?"

The British government has been widely disparaged for advancing short-term economic interests with the Chinese at the expense of confronting the Chinese on their human rights record.

Sophie Richardson, China director at Human Rights Watch characterizes the new UK approach as a "prosperity agenda." That is, the UK has been "arranging a lot of international and domestic policy around purportedly the goal of economic prosperity" Richardson explained. Though it may sound like a positive agenda, Richardson believes that "in terms of their policy towards China, the cost has—at least in reputational terms—been very high."

At a joint press conference with President Xi in October, Prime Minister Cameron argued that the stronger economic ties with China will enable the two countries to "have the necessary and frank discussions about other issues."

Nevertheless, Richardson believes the UK's accommodating behavior towards the Chinese government on human rights issues may not benefit the UK in the long term. "It's not clear how the UK thinks that being gentler on these issues is going to promote the kind of change in China that I think is sensible for it to become a better trade partner," Richardson warned.

In July, the British government faced criticism when it denied Chinese artist Ai Weiwei an extended visa. Ai is an outspoken critic of corruption and human rights abuse by the Chinese government. In 2011, Ai was detained and interrogated in China without being officially charged with committing a crime. Through his art, Ai has drawn international attention to human rights in China

The British government denied Ai's request on the grounds that he had not disclosed a criminal conviction on his application. Ai argued that he had never been officially charged or convicted with a crime. UK Home Secretary, Theresa May, personally apologized to Ai, and granted him his requested six-month visa.

Ai's original 20-day visa would have expired just before President Xi was due to begin his official visit to the UK.

Richardson mused, "It's possible that somebody thought it might not be a good idea to have him in the UK at the same time as Xi Jinping and tried to find a way to…prevent that from happening."

Though Ai's visa request was ultimately reviewed and approved, Richardson believes the episode was damaging for the British government. "Coming so close on the heels of George Osborne's really obsequious rhetoric and the British government saying publicly that it was only going to raise human rights issues in private, among others things really damages the common EU approach," she continued.

Countries around the world will have to decide how best to respond to Britain's accommodation of China. "It is important," Westad argued, "that the Chinese leadership is reminded that most of the rest of the world simply cannot agree with the kind of totalitarian state system that they have adapted."

From the Chinese perspective, the British government's "obsequious" behavior is encouraging. The Chinese government realizes that "Britain is the United States' closest ally, at least on a global level, and the fact that they've been able to get Great Britain to take a much softer line on cyber security and the South China Sea…I think the Chinese have to view that as a pretty effective foreign policy success," said Campbell.

Nevertheless, China must weigh the risks of closer ties with the West. Though the relationship with the UK is beneficial economically, the Chinese government is concerned about possible social and political effects.

Westad believes that, "[the regime] wants to stay in power as a dictatorship, and as China opens up more and more commercially and economically, that becomes more and more difficult."

Within China, Westad continued, young people will begin asking "why should we have less of a say about our future inside of China than other young people elsewhere?"

This is one of many questions that the Chinese government will need to address when "ordinary people experience the outside world more," predicted Westad.

When Chinese people visit museums to see precious paintings and go to theaters in Beijing to watch Shakespeare plays, Britain will be closer to China than it has been since the beginning of the "century of humiliation." Though the Chinese memory of the British may be the destruction of the Old Summer Palace, the UK now has the opportunity to share the best parts of its culture.

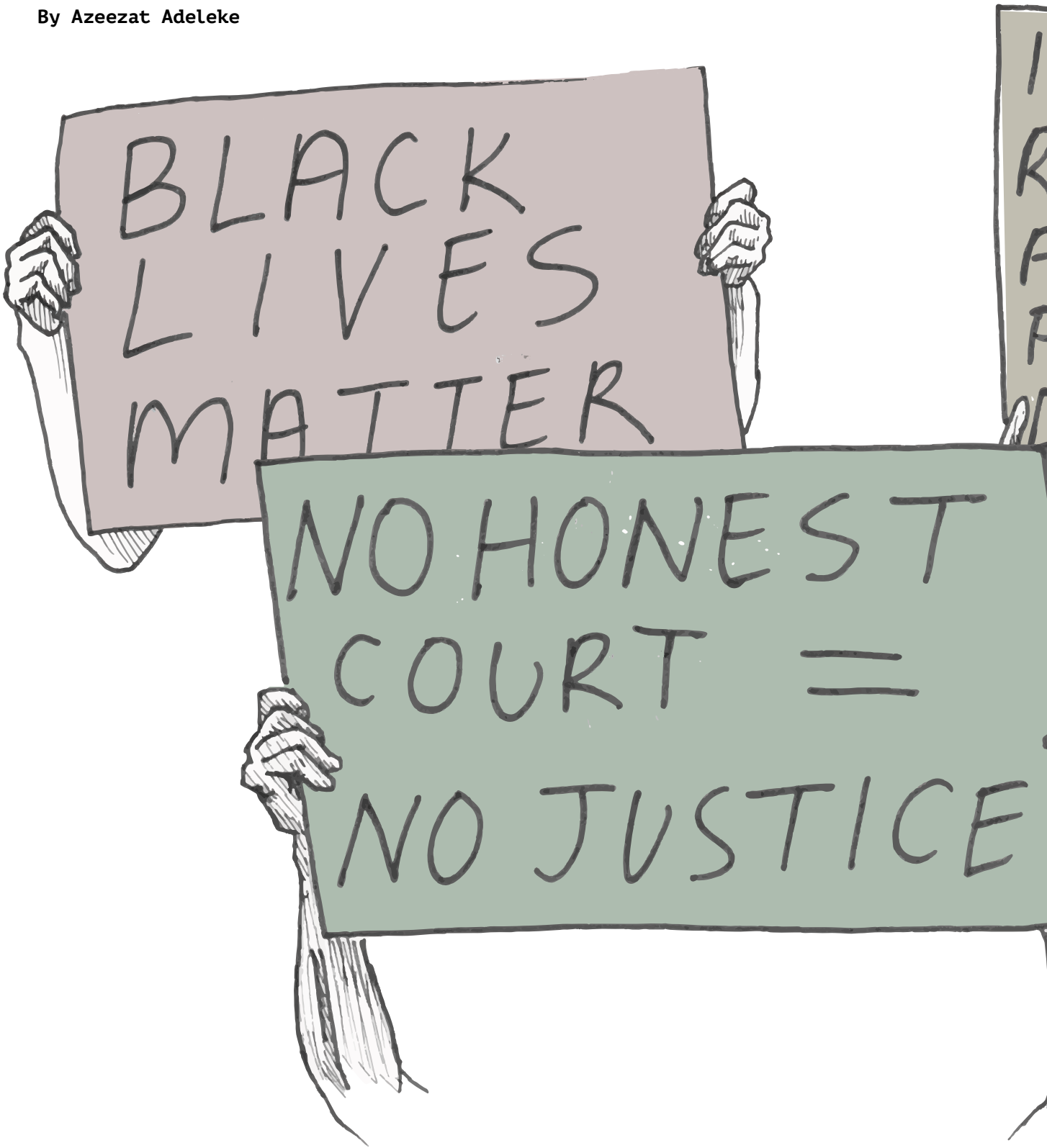
That China has embraced the power that was the source of its disgrace demonstrates their willingness to move forward. As the Chinese government starts to build new connections to Britain, it will have to answer questions it has been able to avoid until now—from the international community and from its own people.

Meanwhile, British officials must consider just how far they are willing to go to accommodate the Chinese government, all the while sipping tea from their fine china.

A Chronic Condition

A Portrait of a Neighborhood Under Community Policing

By Azeezat Adeleke



ILLUSTRATIONS BY CAROLINE TISDALE



Community
Policing
Is
Meant
to
Be
a
Cure

But
Do
We
Have
the
Right
Diagnosis?

Ten protesters stand
in the shadow of the New Haven
County Courthouse,



waving construction paper signs toward the busy street. They have come seeking justice—not for the first time, and certainly not for the last. As the cars whiz by on Elm Street, a major artery through the heart of the city, pedestrians amble along. Some crane their heads to look; others make a study of the sidewalk. I strike up a conversation with one of the protesters, a woman named Jane Mills. She tells me she's with a group called the People Against Injustice. I ask her why she is here.

She says that, on August 17, Mykel Armour, a 21-year-old New Haven resident, uploaded a video to Facebook. The video shows his being detained and then arrested by officers of the New Haven Police Department for interfering with an officer and resisting arrest. Armour, and those protesting in his name, say he was really arrested for filming the police. In Connecticut, this is not a crime at all. In 2011, NHPD released a general order stating that police officers cannot interfere with citizens who are filming them, unless the filmers obstruct police activity or pose a threat.

In the video, Armour appears to be doing neither. He stands in the street with his camera trained toward the sidewalk, where four or five police officers, mostly white, have stopped a few young adults, all black. Armour narrates with a playful cockiness, occasionally turning the camera around to mug for the viewer, in typical selfie style. He steps from the street onto the sidewalk and asks, "Hey, what's going on?" The police officer asks if he has ID. He responds, "I do got ID. For what, though?" Another officer, whose name tag reads K. Malloy, fills the frame, asking again for ID. Armour and Malloy begin to argue—Malloy grabs Armour's phone, Armour complains, the pitch of his voice rising with his indignation. Malloy says the ID is fake; Armour insists it isn't. "I'm mad y'all fucking with me right now," Armour says.

Malloy tries to assuage him—keep your phone in your hands, he says, "I don't want you to be scared. You're looking very scared right now." Armour retorts, "The way they've been beating these black kids up, I should be scared." As the six-minute video ends, Armour is placed under arrest. On the day of this protest, September 24, he will go to court.

This confrontation did not have to happen. According to New Haven's own policing philosophy, it should not have happened. In 1991, Chief of Police Nicholas Pastore and his Deputy, Dean Esserman, brought to New Haven a new policing strategy that was sweeping the country: community policing. Given poor relations between the police and low-income neighborhoods of color, community policing was meant to be two things at once: a cure and a prophylactic. The policy asked police officers not just to patrol and protect neighborhoods, but also to become part of them. Officers were to walk the beat, meet the families, and understand the neighborhood. The policy was meant to lower crime rates and make crime less likely to happen in the first place.

Community policing is the most popular policing innovation of the past three decades. And in New Haven, it worked—for a time. In the 1990s, crime rates fell across the city. But Esserman left New Haven for New York in 1993, and Pastore resigned, after a sex scandal, in 1997. Over the next twenty years, the police department backed away from its community engagement. Crime rates inched up again. In 2011, Esserman returned, this time as Chief, and resuscitated community policing.

In a perfect world of community policing, Officer Malloy would have known Mykel and Mykel would have known him. There would have been no anger, no fear, no confrontation, no escalation. Mykel wouldn't need to film anything at all—why film the police if you trust them? Why film the police if you don't feel threatened?

I doubt that anyone, Chief Esserman included, would argue that community policing could be implemented perfectly, here in New Haven or anywhere else. But among New Haven residents and activists, there is a sense that community policing is not a cure or a prophylactic, but just another symptom of the underlying condition: racial inequality.

At the courthouse, as members of Black Lives Matter New Haven, Showing Up for Racial Justice, and the People Against Injustice continue their protest, I ask Jane Mills how the petition to get Armour's charges dropped has been received. Any word from the mayor? The alders? "Not a thing," she responds. Have any elected officials been helpful? Mills nods because one name comes immediately to mind: State Senator Gary Winfield. He, she says, is always helpful.

Winchester Avenue

Senator Winfield (or Gary, as he is more commonly known) is not a grassroots activist. But he used to be—in the early 2000s, he was even a member of the People Against Injus



"We can no longer hold to the notion that fictive boundaries of the state hold out the real failings of human beings because they wear the uniforms of law enforcement."
State Sen. Gary Winfield

tice. And that might explain why he has focused so squarely and so successfully on addressing the issues that collided on the day that Mykel Armour filmed the police: racial justice, juvenile justice, and police reform.

In June 2014, a bill Winfield co-sponsored, SB 1109: An Act Concerning Excessive Use of Force, became law. Among other provisions, it requires police officers to wear body cameras and makes their departments liable when officers stop citizens from filming them. In a press release following its passage, Winfield said, "We can no longer hold to the notion that fictive boundaries of the state hold out the real failings of human beings because they wear the uniforms of law enforcement."

This sounds like the exact opposite of the sunny rhetoric that usually surrounds community policing. It's clear that Winfield's criticism of the police comes from what he sees every day, right on his doorstep. From his doorstep—or more precisely, two feet to the left of it—I survey the neighborhood. Winfield's house, a buttercup yellow colonial, faces Winchester Avenue and sits a block away from Newhall Street, which bears the same namesake as the neighborhood: Newhallville. We are on the edge of Winfield's district, which covers half of New Haven, from Yale and its Golf Club to the black, working class neighborhoods of Dixwell and Newhallville. It's been two centuries since George Newhall made this the home of his Carriage Emporium, which reached global prominence—that is, until the world changed, his fortunes changed, and the money ran out.

This is Newhallville: a neighborhood of changing fortunes. Sitting next to Senator Winfield on his porch, I see outsized signs for Science Park, Yale's extensive, expensive, attempt to fill in the gaping hole created by the late 20th century decline of Newhallville's industry. Five minutes down the street looms the old Winchester Repeating Arms Factory, once a bustling industrial giant, now luxury lofts that look straight from the pages of Dwell. And yet, Newhallville still has a reputation. It's the sort of place where the headlines are all muggings, mayhem, and murder. That means it's also the sort of place where community policing is meant to do its best work, bringing the police and the community together to solve persistent problems.

Despite the deadlines, on this Saturday morning in October, Newhallville is beautiful: the light filters through scarlet and gold leaves, and the houses are as colorful as a box of crayons. I have come to ask about policing, but we begin by talking about the neighborhood. Winfield, 41 years old, a state senator since 2008, tells me about Newhallville's promise, and its problems, tightly intertwined.

"It's an easy place to see that there could be potential value," he says. Newhallville, within walking distance from Yale, is a prime candidate for gentrification. Winfield continues, "People are coming to extract that value out of the community." Those people include Yale, the real estate magnates who redeveloped the Winchester Factory, and white people buying houses in a neighborhood that is 85 percent black.

"Two years ago," Winfield says, "I came out of my house; it's like 2:30 in the morning. And there's a white girl, and she's got the blonde ponytail, and she's got the shorts on and she's running down this way." He points in the opposite direction of the lofts and Yale. "And I'm like, you're running deeper into the hood? This is amazing! Because you never would have seen it before."

But while new money and new people came in, Winfield saw that life was not getting better for Newhallville's residents. And so, he decided to run for office and "find out why the hell this was going on." He ran an unsuccessful campaign for alder and then became a state representative in 2008. In 2013, he launched a bid for

mayor, got elbowed out of the primary by current Mayor Toni Harp, who had the blessing of the Democratic establishment, and eventually took the state senate seat she vacated in 2014. He is one of three African-Americans state senators, out of 36 total, in Connecticut.

While Winfield has used his reputation as an outsider, an insurgent, to chip away at some problems, Newhallville's deeper issues—the structural problems of segregation, poverty, and disenfranchisement—remain. And those issues contribute to its fraught relationship with the New Haven Police Department. We talk about these problems as I accompany Winfield in doing what he says won him his elections: walking the neighborhood. We step off of the porch and hit the sidewalk.

Winchester Avenue and Thompson Street

At the end of the block, where Winchester intersects with Thompson Street, we walk past the Taurus Club, where drug dealing and gunshots bring the police time and time again, and reach the International Package Store. Neon signs advertise Budweiser and Coors Light, posters hawk $8 bottles of wine and dreams of the lotto. This store, and a tiny grocery a block away, are the only places to get food for a few miles. Winfield tells me that the Package Store is a gathering place, "but not for people who are going to work, not for people who are staying out of trouble."

In Newhallville, jobs are hard to come by. "You know the chances of a young black person from this community getting a job downtown?" Winfield asks me. I picture the stores that surround Yale's campus in the center of the city: the Urban Outfitters, the J. Crew, the coffee shops bathed in the glow of MacBook screens. He doesn't wait for an answer before he dismisses the question with a chuckle.

"Go to Hamden?" Hamden is a middle class town just five miles away, praised by CNN for its job opportunities and "quaint New England charm." But, says Winfield, "They don't want you in Hamden." And there is a mall in Milford, a town 15 minutes away by car. Perhaps Newhallville's teenagers, like their peers across the country, could get jobs at Footlocker or Forever21. The bus to Milford, though, takes an hour and a half each way. Most people here rely entirely on public transportation. So, Winfield asks, "How are you gonna work? Where do you work?"

We keep walking. There's a pause in the conversation and playground sounds—peals of laughter, the rhythmic creak of swing sets—fill the air.

"So, I wanted to ask about community policing," I say. Winfield laughs out loud.

"Here's my thing," he begins. "When you think about it, the mayor and the chief are interested in community policing because it's gonna fix whatever the problem is, right?" But according to Winfield, "We never defined the problem."

The problem might be violence. Or unemployment. Or racial inequality. Or all of the above. Have the mayor and the police chief revived community policing because it solves these problems? Or because it solves a public relations problem?

For Winfield, and the other people who live on Winchester, and Newhall, and Hazel, and Ivy, and Lilac, even a friendly police presence is still a problem. Because it's still a presence. And for Winfield, that presence is inextricably linked to race. His voice rises, "If you were in a white neighborhood, do you really think the answer to any problem would be we need to put more police in that community?" I try to imagine Officer Malloy walking the beat in the wealthy East Rock neighborhood, past the stately Italianate mansions, stopping to talk to the people there about what they're doing and where they're going. I try to imagine him inserting himself

into their lives, hovering at the edges, a constant presence. I stop trying to imagine this. There's no point.

Though the powers that be in this city—Mayor Toni Harp, Mayor John DeStefano before her, and Chief Dean Esserman—offer community policing as a solution, those who work for justice reform see it as the symptom of the underlying problem. Certain neighborhoods and their residents are labeled as criminal. The constant policing makes the label stick.

Winfield says he has butted heads with Harp and Esserman over community policing. He adds, "I know it irritates the Chief every time I say, what you say you're doing is not what's happening." But he plans to keep at it. "I'm going to keep sticking them until they do what they need to do."

I think back a few days, to when I spoke to Barbara Fair, one of the city's staunchest advocates for racial justice. When I asked her about community policing, her reaction was similar to Senator Winfield's: a dismissive shake of the head. There was, she says, a time when there was "real" community policing: cops got to know the neighborhood not because they were always on patrol, but because they lived there. It was their community, too. And yes, they were still law enforcement officers, but for residents, they didn't feel like outsiders. Those cops, many black, have largely retired. Most of the force now lives in the suburbs.

"Now, the officers, you can't even ask them a question. They're so belligerent," she said. "They look at you like you're a suspect. And people get tired of that."

In the video, Mykel was tired of it—you can hear it in his rising voice, colored by indignation and fatigue. And you can hear it in what he says, more to himself than to anyone else: "The way they've been beating these black kids up, I should be scared."

And, I would guess, Officer Malloy was tired, too. How does it feel to be sent to police a community that does not even want you there? To be the physical manifestation of the disconnect between New Haven's leaders and its residents?



State Street

A few weeks later, on an early Saturday evening, I walk with Officer Jennifer McDermott from the austere headquarters of the New Haven Police Department to the parking lot around back. I slide into the passenger seat of her squad car and try not to gawk at the holding pen behind me.

McDermott checks in with dispatch and in a second we're zooming down State Street, headed to the beat she has patrolled for two of her three years as a cop in New Haven: District 7, which covers Cedar Hill, East Rock, and Newhallville. For the first half of her eight-hour shift, which lasts from 4:00 pm to midnight, I will ride with McDermott to see what community policing, and Newhallville, look like from her eyes.

Winchester Avenue, Again

McDermott, blonde hair pulled into a tight bun, looking younger than her 36 years, begins by taking me on a tour of the neighborhood. We drive past Senator Winfield's house, windows aglow, and turn onto Sheffield Avenue. "I'm here more than I'm with my own kids," she says. "And I see the same people over and over." There's the woman in the white house addicted to PCP, the men who spend hours on the stoop in front of a yellow house, smoking and drinking and lounging.

The regulars aren't just people: over the next eight hours we pass a dozen corner stores. They all have the same flavor: tiny establishments advertising check cashing and more lotto dreams. "Every one of these corner stores is selling," she tells me. Crack and PCP are usually in stock. Tonight, though, McDermott says the corners are emptier than usual.

An electronic chime dings: it's McDermott's first call of the night, to an automated alarm at a church on Division Street. We arrive and wait a moment for backup. It comes in the form of two officers in another car, both young guys. "Need some help, Jen?" one asks. For a moment, they exchange jokes: of the alarm, one says, "Could just be Jesus!" There's nothing to be done here—the building is locked, and as we pull away, the sound pulsates down the block. Yet, none of the neighbors has called 911 to report the possible break in. "Even after shots fired, people sometimes don't call the police," McDermott says. "They're afraid."

We drive by a small park, where teenagers stand around and little kids run around. "The officers usually kick them out of this area," McDermott says, probably for loitering. She wouldn't, though. "Where else are they going to go?" She decides that we should go talk to them. We approach three girls, no older than ten, sitting a tree. Officer McDermott is all friendly hellos as she walks up to them, and I trail behind. The girls look our way and then back at each other. "What are you all up to?" McDermott asks. Building a tree fort, they respond. The ground is littered with construction debris: a broken tree branch, a bundle of paper streamers. "Are you guys gonna clean up?" McDermott asks, sounding very much like a mother of four kids. They nod quickly.

In one sense, there is no tension here. The girls aren't in trouble—this sounds like the gentle chastisement you would get from the lady next door. But the dark blue uniform and the New Haven Police Department car are enough to put the kids on edge.

This scene—friendless met with edginess—plays out all night, in ways big and small. On Winchester, we pass a house where a black woman with a lined face stands on the porch, immobile. McDermott slows down the car and calls out, "Hi, how are you doing?" The woman barely reacts, barely nods. "She gets beat a lot," McDermott says, telling me that she and her boyfriend drink a lot, and fight a lot.

As we complete circuits around the neighborhood, we pass a group of a few kids, led by a teenage girl sporting magnificent purple box braids. "What are you guys doing?" McDermott asks. The kids stop and look at each other. "Nothin'" one responds. Over the course of the night, we pass them at least twice more. It looks like they, too, are spending their night completing circuits of the neighborhood, though I wonder why. Each time we see them, they eye us over their shoulders.

If community policing means being engaged and friendly, then Officer McDermott has succeeded. But policymakers promised more than that. Community policing was meant to close the gap between officers and residents not just by improving their demeanor, but by getting them to solve problems together. Tonight, though, it seems like the barriers to trust may be too high.

The sun has gone down, and the streetlights cast light and shadow



If community policing means being engaged and friendly, then Officer McDermott has succeeded. But community policing was meant to close the gap between officers and residents not just by improving their demeanor, but by getting them to solve problems together.

against the pastel houses. On a low concrete wall abutting an empty lot, someone has spray painted Black Lives Matter. I ask McDermott about this movement and the high-profile police killings over the past few years: Trayvon Martin, Eric Garner, Michael Brown, Sandra Bland. How have they changed her time on the beat?

"Let's say I go to a call and someone gets arrested. The whole community comes out. They'll bring up issues of police brutality and they'll bring up race," she says. McDermott makes an effort: going to community management team meetings, getting to know the local alders. "But sometimes," she says, "They don't want me involved in what they're doing… they don't want police in there." The city pushes community policing, but McDermott adds, "Sometimes they don't want us here."

That statement lingers in the air. I'm unsure of how to respond, so I ask her about her body camera, a black plastic square clipped to her shirt. Does it change how she interacts with people here? "I don't change the way I speak to people," she says. "This is just another tool that could help me. I don't think it could hurt me." Sometimes, after she gets back to the station, she re-watches the footage, hoping to learn something.

The police may be filming, but the people are too. When she goes to calls, she says, many residents announce, "I'm videotaping you!" She says doesn't have a problem with it—after all, she's videotaping them, too. I gingerly ask if she's seen the Mykel Armour video. No, she says. "But show me!" We pull into an empty parking lot and I pull up the video on my phone.

At 0:46 seconds, Armour steps from the street onto the sidewalk, where the police officers were in the middle of asking the men they had stopped for ID. "You don't have ID?" one officer says. "For what though?" Mykel responds.

McDermott pinpoints this moment. "He walked into the scene," she says. According to her, that meant he was interfering, and thus became part of the loitering complaint. As we watch Armour and Officer Malloy's confrontation, she tells me that Malloy is a seven-year veteran of the force, and a "very good officer."

Re-watching the video with Officer McDermott, I begin to think that Officer Malloy and his colleagues don't seem that unreasonable. "We got a call, all you guys hanging out here…a suspicious person call, so we're all showing up," Malloy says, shrugging. Another officer chimes in: "You can't gamble in the park, guys. We told you this many times. We give you breaks and breaks and breaks."

Armour, having been told to sit down on the curb, calls out to Malloy, "That's not a fake ID either, you heard?" Malloy asks him where he got it. "Uh, I got it down at a pawn shop." So, it's fake, Malloy says.

"Word? It's not a regular card?"

"Word. Until we figure out who you are, can you put your hands behind your back?"

This was not quite the narrative put forth at the protest outside of the County Courthouse. They say that Armour was arrested because the police didn't like being filmed. McDermott says, "He got his balls broken because he stepped into the scene and was sassy…It's not about photography. We get filmed all the time."

We can wonder who's telling the "truth" here, but to do so misses the point. Instead, we can examine the reality: in the video, a young black man and a police officer have a needless confrontation. Mykel Armour didn't pose much of a threat and he probably didn't need to be arrested. (And, on Sept. 24, his charges were dropped). Officer Malloy was aggressive in some moments, like when he tussled with Armour over the phone, but kind in others: "I don't want you to be scared." I can believe McDermott when she says that he's a good offi-

cer. But this incident shows that, even under petty circumstances, the underlying tension between communities of color and the police can easily spiral out of control.

Ferry Street and English Street

It's just after 7:30 pm. Suddenly, there's another electronic ding. McDermott says something into her radio and turns the on the flashing lights. She hits the gas. Hard. I'm pushed back into my seat. I don't ask what's happening.

We speed to the corner of Ferry and English, joining at least four other police cars. They illuminate everything in pulsating blue and red light. Police officers, mostly white, have a pinned a man to the pavement. A woman is screaming. Both are black.

"If something happens to him, we've got him on record!" In her hands, a cellphone. Filming the police. She bellows, "HE SAID HE CAN'T BREATHE. CHECK HIS CHEST!"

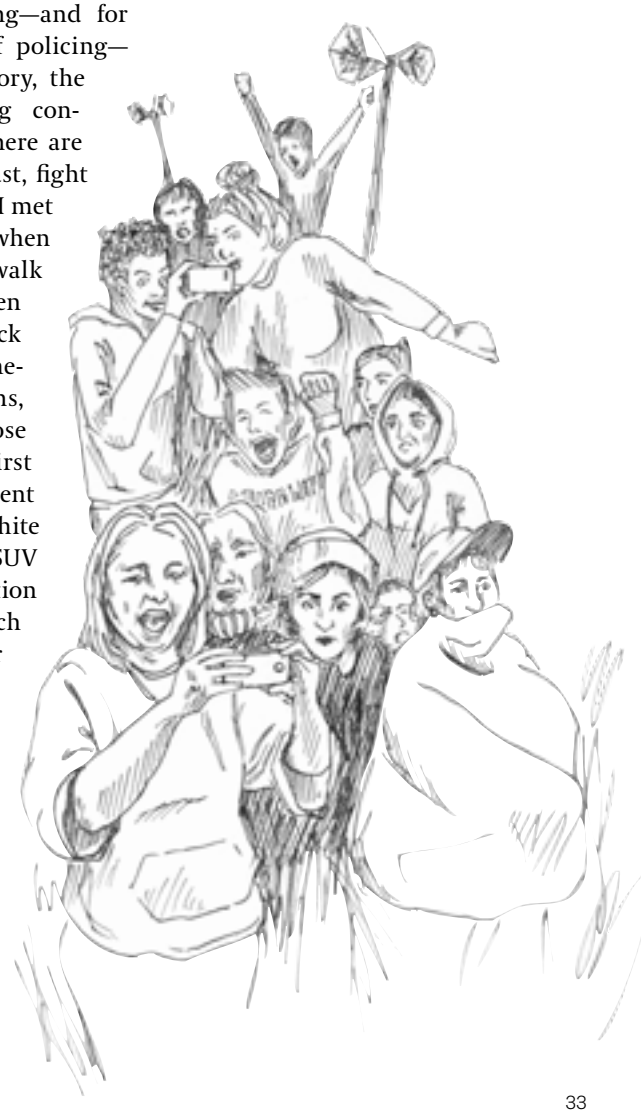
Standing on the opposite corner, those words ring through my head. He said he can't breathe. I think about Eric Garner, about his horrific death on a hot city sidewalk, about the movement to save black lives like his, and this one, and mine. I press my fingernails into my palms.

The woman says that one of the officers kicked the man in the chest. In a second, they walk him to the back of a police wagon. Officer McDermott goes to talk to the woman and assure her that the man is not injured. "That's why black people these days are getting hurt—because of officers like you," the woman spits.

Back in the car, my time with her almost over, McDermott tells me that she tried to do some "community policing after the fact": calm the woman down, offer the suspect some water. "She was pissed," McDermott says. "But I didn't see anything about black and white when I went on scene…I saw two police officers trying to detain him."

It sounds like something she said an hour ago, when we were talking about the video. "I can honestly say that I don't know any officers in this department who are racist," McDermott told me. I know that she is thinking of the naked, open racism that has defined so much of American history: the slurs and epithets, the black bodies toiling in cotton fields. McDermott, like many of us, doesn't recognize that racism today is usually much less visceral. Instead, it's become insidious: persisting in the structure of our public policy, and in the subtleties of everyday life here. It is not just in the blood of this country, but in its very bones, seeping through to the marrow.

Community policing—and for that matter, any kind of policing—cannot address this history, the most critical underlying condition of them all. But there are people who, given the past, fight for justice in the present. I met some of them on Sept. 24, when they took to the sidewalk in front of the New Haven County Courthouse: black and white, twenty-somethings and senior citizens, veteran activists and those protesting for the very first time. There was one moment that I cannot forget: a white woman in a shiny gray SUV stopped at the intersection of Elm Street and Church Street and rolled down her window. "My father's a cop," she shouted. "If you weren't doing anything wrong, you wouldn't get arrested!" The protesters respond to this outburst with derision; the harsh words don't hurt them. They just prove their point.





PROFESSOR-IN-CHIEF

WAS LARRY LESSING'S PRESIDENTIAL CAMPAIGN **DESTINED TO FAIL?**

BY **THOMAS ZEMBOWICZ**

Larry Lessig wanted Americans to "Feel the Nerd" in 2016. At least that's what the coffee mugs and laptop stickers for sale on his campaign website declared, bearing a cartoonish drawing of Lessig's face complete with round glasses and a crisp white shirt alongside the motto.

Lessig's campaign merchandise captured a bold image. But did Americans really want to elect a Harvard Law professor, a certified "nerd" by anyone's standards, to the presidency? For Lessig, it wasn't something Americans necessarily should want—it was something that they needed in order to fix an electoral system hopelessly corrupted, in his view, by moneyed interests, gerrymandering, and barriers to voting access. Yet by early November, Lessig's campaign was over.

As an academic whose work over the past years has focused almost exclusively on electoral reform and the citizen inequality, which he asserts is the root of all other inequities, Lessig appears as the ultimate outsider. In the last election cycle, he jumped into *The Politic*al process by founding Mayday PAC, described as the "SuperPAC to end all SuperPACs," which tried to support candidates who prioritized campaign finance reform. He failed miserably. The launch of his presidential campaign heralded a bolder approach: changing the system from the top.

On one hand, Lessig's talk of a "rigged" electoral system and broken Washington seemed to fit right in with the anti-establishment rhetoric characterizing this election cycle. However, Lessig's brand of politics is different from the fiery speeches often heard at Iowa campaign stops this time of year. His speeches over the past year seem more like TED Talks, with Lessig delivering his fast-moving case for electoral reform backed up with charts and an air of authority.

Lessig's plan to reform the electoral system seemed simple. If elected, his first priority would have been to pass the Citizen Equality Act of 2017—a landmark piece of legislation bundling a variety of campaign reforms, including automatically registering voters and giving vouchers for all citizens to donate to federal candidates. Lessig would have then stepped down and retreated from public life having "saved" American democracy, leaving the day-to-day running of the country to his vice president, who would have been chosen to represent the platform of today's Democratic Party.

For those who agree that the influence of money in electoral politics has grown to a dangerous level, Lessig's targeted approach seemed attractive. Thania Sanchez, an assistant professor of political science teaching international law at Yale, admired Lessig's bold solution to an issue that politicians have been unable to address.

"Some of the reasons why this came about are really hard to deal with, like Citizens United," says Sanchez, referring to the US Supreme Court decision that gave an official stamp of approval to Super PACs. "I think that's probably why [Lessig] and other people think we need a president that's going to tackle this in other ways, because it legally allows for so much money to be part of politics."

The campaign got off to a fast start, successfully bringing in the one million dollars Lessig said he would need to raise before throwing his hat in the ring. Yet even after Lessig backtracked on his promise to resign and announced that he would govern as a conventional president in order to

draw support from those who found the idea of a "referendum president" too hard to swallow, the move failed to save the campaign. Most polls did not include Lessig as a candidate, and those that did had him hovering around one percent. His numbers sidelined him during the first Democratic debate, the best opportunity for a candidate to introduce himself to millions of viewers. The entire Democratic Party, as Lessig lamented in a video announcing the end of his campaign on Nov. 2, had "changed the rules" in a way that appeared bent on squashing any chance of a Lessig candidacy.

Emaline Kelso '17, cofounder of Yale Students for Bernie, a group backing Senator Bernie Sanders' presidential bid, believed that even politically active students invested in electoral reform didn't get excited about Lessig.

"I only heard about him in brief and mostly in jest. I don't think people took him very seriously," she recounted.

In an election cycle in which even Donald Trump, the crude and irascible real estate mogul dominating coverage of the Republican campaign, is considered serious competition, Lessig's call to action was quickly dismissed by both party elites and the media. Is teaching and researching in the classrooms of the Ivy League on the issues that affect the US not a legitimate preparation for political leadership?

Electoral politics and academia certainly can intersect, and Lessig wouldn't be forging an entirely new path. According to the *Chronicle of Higher Education*, 320 university professors have served in Congress since 1774. A few presidents began their careers as professors, including Woodrow Wilson, who launched his campaign in 1912 after many years teaching at Princeton, including a tenure as the university's president.

Professor Eitan Hersh, who researches U.S. elections, campaign strategy, and voting behavior at Yale, doesn't think that professors face an electability problem in today's political climate.

"One of the most popular politicians in America today is Elizabeth Warren, who is a professor," he said of the current Democratic senator from Massachusetts. "I think that if Elizabeth Warren decided to run for president, as many people hoped, she would be a very prominent candidate. Of course professors can [run and do well], if the right person chooses to run with the right experience."

Warren, who was a colleague of Lessig's at Harvard Law before successfully defeating the Republican incumbent Scott Brown in 2012, benefitted from her experience chairing the Congressional Oversight Panel established to oversee the Troubled Asset Relief Program (TARP) program. Having made a name for herself as a Wall Street watchdog, she ran as a champion of the people, a politician who could use her background to fight for everyday Americans.

That didn't stop Republican incumbent Senator Scott Brown from taking a swipe at Warren's academic credentials during one of their debates. Responding to Warren, who had laid out his congressional voting record and attacked his "lock-step" unity with the national Republican party, Brown delivered a soundbyte reprinted in headlines next morning throughout the country: "I'm not a student in your classroom." The interjection reflected an underlying narrative that Brown wove throughout the contentious campaign - that "Professor" Warren's line of work disqualified her from serving as an effective political leader. Senator Brown's comments recalled the chant made popular by Pink Floyd: "Hey! Teacher! Leave those kids alone."

Warren managed to overcome the notion that academics in politics are out of touch with everyday Americans' concerns, something that plagued President Barack Obama, who taught constitutional law at the University of Chicago before entering national politics, on the campaign trail and even into his presidency. At the inaugural National Tea Party Convention in 2010, Sarah Palin railed against the new president's academic credentials and suggested that they made him incapable of holding the nation's highest office.

"They know we're at war, and to win that war we need a commander-in-chief, not a professor of law standing at the lectern," she told an enthusiastic crowd.

"There is a bit of an anti-intellectualism culture in the United States," explained Sanchez. "The likely Republican voters who like people like Trump or Carson like them because they think they're more like themselves. Academics usually don't pass









the 'this is a guy I'd want to have a beer with' test." And it's certainly difficult to imagine having a beer with Larry Lessig.

The distrust of academia in American politics is not new. William Frank Buckley, Jr., who graduated from Yale in 1950 and quickly became one of the most articulate voices in the conservative movement, was sharply critical of the homogeneously liberal attitudes cultivated at Yale and other universities—and feared what that meant for the nation's political future. Buckley famously declared that he would "sooner live in a society governed by the first two thousand names in the Boston telephone directory than in a society governed by the two thousand faculty members of Harvard University."

It's this anti-intellectualism that seems to have stopped Lessig's campaign before it even began. Although President Obama and Senator Warren managed to sell their time at the lectern as part of a larger narrative of service and pointed to past political activity, Lessig could not.

Of course, Lessig's campaign had deeper issues than the difficulty of running on an academic record in a political environment that distrusts academia. Though Sanchez agreed that Lessig's concerns are important, the campaign's initial insistence on one issue made it infeasible.

"I think this is the moment when you realize that as an academic, with some of the things that we think are really important and needed, the realities of how you get there get really complicated," she said.

Lessig failed to consolidate support even in the world of academia, where many such as Hersh remain skeptical of his conclusions and methods.

"I think that [Lessig's] view is wrong. It's mostly articulated to drum up the liberal base but the empirical evidence shows that there is no relationship between outside spending and a candidate's electoral prospects," Hersh pointed out. "Everything he says about politics is completely off the wall. He's so far off his area of expertise that it's a little embarrassing."

It also didn't help that the cornerstone of Lessig's campaign—electoral reform—wasn't a particularly exciting or relatable issue for many Americans.

"I think that people don't find campaign finance reform as universally sexy [as other issues]," Kelso shared. And unlike Warren and other successful politician-academics, Lessig wasn't able to change his language to lend such "sex appeal" to complicated problems.

Kelso thought that even if Lessig had more media coverage, she doubted that he would have polled higher.

"I don't think it was a particularly intelligent campaign," she said. Nevertheless, the issues that Lessig would have brought into the arena made his short-lived campaign a disappointment.

"I do think it's a shame that the media didn't take it more seriously because I think it's something that people could have talked about more, and I would have loved to see him pushing the other candidates on this issue," she added.

Lessig's national electoral prospects appear to be over. While he hasn't ruled out a run as an independent in the general election, there is no indication that he would fare any better. Yet in an age where national elections are charged with sensation and spectacle, perhaps politics isn't the best place for an academic to advance a national conversation.

In Sanchez's view, today's strenuous campaign trail doesn't make it a great avenue for a campaign to purely push thought.

"You're basically on the phone all the time," lamented Sanchez of the demanding dependence on fundraising, the aspect of campaigning that Lessig ironically seeks to change. "I think a lot of academics know that there are so many others ways to help make or change policy. They become academics for a reason."

"Academics usually don't pass the 'this is a guy I'd want to have a beer with' test."

Thania Sanchez, Asst. Prof. of Political Science

Nevertheless, it's hard to tell what comes now for Lessig, who rejects the notion that professors should just remain at the lectern. Even though academics like him tend to sink rather than swim in today's media and money-driven political system, Lessig's provocative track record of thinking big and taking long-shot risks to address huge systemic problems challenges how we view political institutions—and who participates in them. His Mayday PAC is still in action, even if it seems far away from its ultimate goal of electing a congress capable of passing sweeping reforms. And with a time-sucking campaign behind him, who knows what out-of-the-box, infeasible yet imaginative political venture Lessig will embark on next.

JUNCTURE

Investivating the Intersection of Arts and Human Rights



"A intersection B intersection C" Amalia Pica

BY **SANOJA BHAUMIK**

They say a picture is worth a thousand words, but sometimes a picture conveys what words never could. Images tell stories – sometimes the most challenging and important ones. A snapshot of a Syrian toddler on a beach, a photograph of a revolutionary movement, films of war–these forms of art connect unaffected individuals to inhumane conflicts. Yale Law School recognizes this connection in JUNCTURE, a new initiative set to explore the relationship between art and human rights movements.

JUNCTURE addresses this link through several avenues, including a multi-disciplinary seminar, three projects in which visiting artists will collaborate with current students, five MFA fellowships, and a public lecture series and symposium. In an interview with *The Politic*, David Kim, Deputy Director and Curator for JUNCTURE, spoke of the connections between art and politics that the initiative will investigate.

"Art in some ways is essentially concerned with the same questions of representation and discourse as law. Through art, one focuses on the different techniques of representation and develops a keen or analytic ability to participate in politics," he explained.

JUNCTURE's graduate seminar, titled "Art and International Human Rights: Theory and Practice," brings together fifteen students from multiple schools at Yale, including the School of Art, the Law School, and the Divinity School.

"The initiative is about creating a conversation, appealing to lawyers, activists, scholars, and contemporary artists," Kim said. "That has to do with the openness to heterogeneity of

"I think that art has always played an important role in shaping opinion and shaping social responses. Because art is visceral and really reaches the heart and the imagination rather than the brain, it has a lasting impact."

-Kay Chernush



"Ghost Workers" Kay Chernush

those in the initiative, which creates a meaningful intellectual experience."

The purpose of the seminar is to create "encounter," a space where students from different graduate programs can draw upon their distinct approaches to understanding conflict and political issues.

The initiative's visiting artists will work with students on projects about human rights abuses. Chitra Ganesh and Mariam Ghani, visiting artists at JUNCTURE, will continue their project "Index of the Disappeared: The Afterlives of C.I.A. Black Sites". Ganesh and Ghani began the project in 2004 to investigate the experiences of those detained under suspicions of terrorist activity after 9/11 by collecting released C.I.A. documents and drawing attention to large erasures in data. In a talk at Yale Law School, Ghani and Ganesh elaborated on their work and mission.

"We are archivists. We collect what already exists in the world and connect it in meaningful ways," Ghani said. Their work is primarily investigative and research-based, but they portray their findings through uniquely artistic means.

Much of their artwork consists of "documentation": annotated and edited images of C.I.A. released documents concerning detainees and their conditions. In a document titled "Detainee Health and Medical Record of Screening Examination" released by the C.I.A. in 2009, Ghani and Ganesh highlight the phrase, "It was determined that the detainee was holding onto hope that he would be found innocent. Investigators explained this was a false hope," along with the phrases "hunger strike" and "separation from his brothers." The artists visually craft the placement of these stark C.I.A. statements so that they are bolded and centered; this deliberate framing facilitates the viewer's understanding of the subject and brings immediate attention the human rights violations. The artists' only annotation in the document is the phrase, "How do we catch fate's dagger...by the blade or by the handle?" The rare commentary in the documentation brings a strong poetic tension to the calculated, government-issued pages.

Ghani spoke of their art as bringing out the "warm data" in the issue, which she defines as the individual, human elements of inhuman systems.

"It is about a detained individual's life and experiences, as opposed to data collected by the government to implicate them," she explained.

Ghani and Ganesh illustrated this concept in an installation commissioned by the Lower Manhattan Cultural Council. The installation showcased two rooms adjacent to one another: one displaying an interrogation room, the other an individual's living room. The empty living room contains books strewn on the table, picture frames, a vibrant blue wall and a maroon Persian-style rug–all objects alluding to the life of a detainee before detention. The artists place it in direct contrast with the colorless C.I.A. interrogation room, filled with stacked office shelves and a single metal table. The viewer is confronted by what the interrogation room omits: the humanity of its detainees.

"By putting these problems on a visual platform, we bring a new dimension to the issue," she said,



"The Game, The Track, The Life" Kay Chernush

explaining that people can more fully understand complex issues and movements through visual means because humans live in a textured world.

Non-visual forms of art can be just as effective in delivering these messages about human rights, however. Dipika Guha, another visiting artist at JUNCTURE, is collaborating with students to produce a play about migration and refugee crises throughout history. Students working with Guha are each tasked with researching great migrations and crises from their own homes. Her past plays have focused on the ideas of "otherness" and included themes such as fleeing from Japanese internment camps, the legacy of colonialism, and immigration in America.

In an interview with *The Politic*, Guha spoke of the unique ability of theater to portray human rights issues: "When theater is at its best, it relies on transformation rather than change. Both between the audience and the listeners, between the play and the actors, the quality of flux is very akin to what happens in the world, nothing is stable."

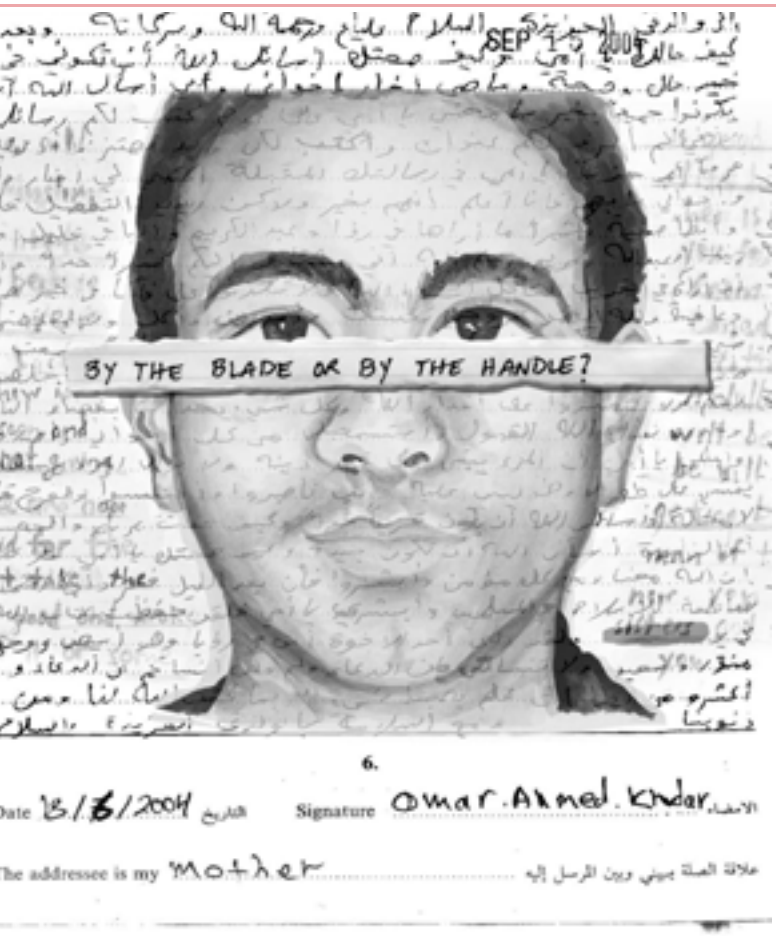
She also suggested that theater forces the audience's complicity. In live theater, audience members must play a part in the actions being committed on stage. The audience is a witness, each individual viewer a bystander. In these positions, audience members can be easily consumed by discomfort, and even guilt, for on-stage atrocities. They are tasked with feeling both the emotional pain of the subject and the frustration of the perpetrator, in a semi-passive role. Playwrights, therefore, have the power to elicit anger and calls for action within their audiences, and they can encourage a greater public awareness about the intensity of human rights abuses.

Outside organizations have also developed to formalize the link between art and human rights movements. Professional photographer Kay Chernush founded ArtWorks for Freedom, a non-profit that uses art to raise awareness about global human trafficking. In her recent exhibition "Bought and Sold: Voices of Human Trafficking," Chernush showcased photographs set from the viewpoint of human trafficking victims. One work, titled "Ghost Workers" is narrated by the phrase, "He locked me in a container for three weeks. Nobody noticed." Colored images of transportation containers and boats are superimposed onto each other, with a glaring negative image of a young man's face in the background. The work describes the tumultuous journey of human trafficking victims. The viewer peers through the victim's eyes, seeing the instability firsthand through the changes of color and texture.

Chernush told *The Politic*, "I think that art has always played an important role in shaping opinion and shaping social responses. Because art is visceral and really reaches the heart and the imagination rather than the brain, it has a lasting impact."

As Chernush suggests, art can bridge the gap between the experience of a human trafficking victim and the experience of an uninvolved viewer; it brings together what is strange and unfamiliar.

Before founding ArtWorks for Freedom, Chernush traveled to human



"Introduction to an Index"
Chitra Ganesh and Mariam Ghani



"Les Bouqets" JR

"...artists are in a unique role to speak about issues that concern the public, and they can offer new, creative perspectives that result from their research."

trafficking sites for the United States Agency for International Development and met with several survivors and advocacy groups. Chernush, like Ganesh, Ghani, and Guha, became an expert in her field of interest by relentlessly investigating the subject matter. This research equips artists like Chernush to deliver the piercing messages embedded in their artwork.

Creative Time Reports, a subset of public arts organization Creative Time, praises artists for speaking out about political issues.

Marisa Mazria Katz, the Editor of Creative Time Reports, further clarified the role of her journal, "We work with artists whose practice focuses on the communities in which they live. These artists know about these issues and they are capable of speaking to these issues."

Publications like Creative Time Reports facilitate the dual role of artist and activist by bringing the work of artists to the mass media and giving them a platform beyond the traditional gallery settings. Katz emphasized artists' roles in shaping the way the public views political issues, suggesting that artists have a distinctive approach in investigating their subjects: they are not confined by regulations and not expected to deliver a singular result. Artists often conduct

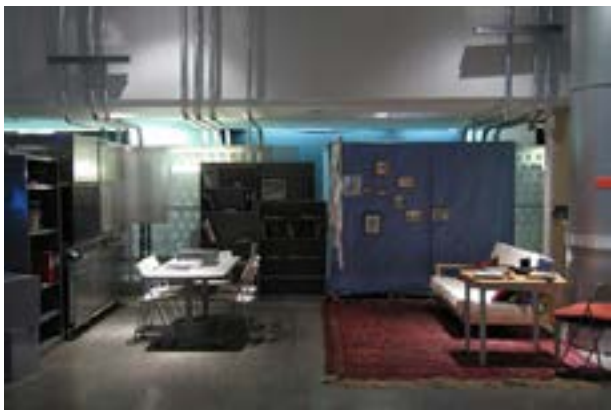
purely independent investigations, as they do not represent larger publications or interest groups. Because of these factors, artists are in a unique role to speak about issues that concern the public, and they can offer new, creative perspectives that result from their research.

For example, Katz cited Trevor Paglen, a contributing artist at Creative Time Reports, who released rare images of the National Security Agency headquarters outside of Washington D.C. Paglen recognized the scarcity of images of the NSA, an agency criticized for hiding itself from the public. In response, Paglen rented a helicopter and took aerial photographs of the NSA compound, bringing visuals to the heated debate over government secrecy.

"Artists deserve a seat at the table, and they deserve to be heard on the issues they are passionate about," said Katz.

As Creative Time Reports and JUNCTURE show, artists have the potential to bring new information and ideas into the realm of political conversation. In our visual-dominated, sensory world, art frames how the public views an issue, by drawing links between foreign experiences and what people view as their own.







"National Security Agency"
Trevor Paglen

"LMCC"
Chitra Ganesh and Mariam Ghani

"National Reconnaissance Office"
Trevor Paglen



The Negotiator

The Politic Sits Down With Jake Sullivan, Hillary Clinton's Foreign Policy Advisor

BY **IAN GARCIA-KENNEDY**

PHOTO EDITED BY ETHAN CARPENTER

I'm sitting in a coffee shop interviewing an up-and-coming political rock star. Between questions I make a joke about his not having had to prepare for our interview, because it's just for a student publication.

Without hesitation he replies, "In the age of the internet, there is no such thing anymore as a more or less prominent publication."

It's exactly this type of constant awareness that has helped him achieve so much. Even getting in touch with him to set up the interview was remarkably painless. He clearly believes in political accessibility, but part of me wonders if this strategy ensures that the interviewer likes him before they have even met.

His name is Jake Sullivan. He is the former National Security Advisor to Vice President Joe Biden, former Deputy Chief of Staff to Hillary Clinton during her tenure as Secretary of State, and now one of the top foreign policy advisors on her presidential campaign. He rose to international prominence as one of the orchestrators of the 2015 Joint Comprehensive Plan of Action, better known as the Iran Nuclear Deal. He also happens to be a visiting lecturer at Yale Law School and currently lives in New Haven while commuting to Clinton headquarters in Brooklyn four times a week. If you haven't heard of him yet, you will—soon.

But for now, sitting in the coffee shop, Sullivan remains completely unrecognized. The Politic is getting in early, as this is the first time Sullivan has ever agreed to be interviewed for a profile. He previously turned down Politico and the New York Times. He told me that he was making an exception out of solidarity with student publications, having been an editor-in-chief of the Yale Daily News.

Jake Sullivan never planned on having a career in national politics.

In his own words, "I first got involved in national politics by getting involved in local politics. I moved home to Minnesota after my clerkships, planning to build a career there and to contribute to the community and to be engaged locally."

He didn't stay local for long. He served as chief counsel to Amy Klobuchar during her 2007 Senate campaign When she won, he moved to Washington, D.C., for a few months to help her transition and set up her office. The move was supposed to be temporary. However, a mentor of his recommended that he interview for a position as a policy advisor for Clinton's 2008 campaign. He clearly made an impression: she has retained him as an advisor ever since.

Talking to Sullivan, one could get the impression that he just happened to be in the right places in the right times. This seems less like a politician's false modesty and more like a genuine, deeply ingrained humility. There is sincerity in his manner that written quotes just can't communicate.

When I ask him about his overall political views he explains, "I don't think that being a lifelong Democrat means being hyper-partisan." Even though he clerked for liberal Supreme Court Justice Stephen Breyer, he interacted with many staffers from the conservative wing of the court. He feels that this has given him a well-rounded view of politics.

Next I ask whether or not he diverges from the Democratic Party on any key issues.

He responds, "The party itself is a pretty big tent. You can stack up five Democrats and have a pretty wide spectrum of views from Joe Manchin of West Virginia to Bernie Sanders of Vermont, and everything in between. So I don't think there's an issue on which I would say there's a consensus in the Democratic Party and I deviate from it." His tone is so convincing that I simply write down that his view of the party is comprehensive. It's only later, reviewing my transcript of the interview, that I realize he may have dodged the question.

It's not hard to see why he has been chosen as a key figure in not one, but two major campaigns, and why more experienced politicians keep placing their trust in him. As a campaigner, he's always on. I ask about Donald Trump and cultural extremism, which he immediately steers into praise for Hillary and how she moves beyond empty rhetoric. While reading that may set off your cynic alarms, in the moment, I never for a second doubted his sincerity. In Sullivan's reasoning, when you bring up poison (Trump), of course you're going to talk about an antidote (Clinton). Once again, it's only later that I realize it might have been a calculated move.

Sullivan says he's nonpartisan, and works hard to keep his career as an educator from reflecting any

If you haven't heard of
him yet, you will—soon.

political agenda. As an academic, his area of focus is 21st century politics. He is quick to acknowledge the potential for biased pedagogy given his close proximity to what he teaches. To avoid this, his class on current foreign policy is jointly taught with two other professors. He even included a reading that was a "full frontal assault on the [Iran] Deal."

On his attempts to be completely nonpartisan in the classroom he adds, "Any argument you're going to make will have weaknesses and blind spots and you should acknowledge them. Any criticism is going to have some kernel of validity, and you have to acknowledge that too."

We next delve into the negotiations that have secured him a place in the history books: the Iran nuclear deal. The agreement was signed in July 2015 after several months of secret meetings. The goal was to drastically reduce Iran's nuclear capabilities. However, it has faced criticism for not being tough enough and for relying too heavily on faith that Iran will stick to the rules.

Sullivan first became involved in 2012, participating in secret face-to-face meetings with Iranian officials in Oman. After a few months, a delegation formed to carry out more secret meetings to create an interim deal. This ultimately led to the Joint Comprehensive Plan of Action.

Sullivan does not think that the deal is enough on its own. It is odd to hear a political figure deliberately downplaying arguably his crowning achievement, but with characteristic modesty he tells me, "It is not enough just to say, 'Okay, we've got the deal.' The deal needs to be enforced directly, aggressively and vigilantly and embedded in a broader strategy that pushes back against Iran."

He adds that Clinton will be an excellent future negotiator, citing her track record on Iran: "She is exactly the kind of person who can rally the world to ensure that Iran complies with the deal." Once again, he steered the conversation toward Clinton's presidential abilities so organically I didn't notice the plug until I was reviewing my recordings.

My next question is whether or not he sees any major potential for failure in the deal.

"Actually, Secretary Clinton gave a big speech at Brookings in September that I helped her think through but that she very much put her stamp on, and which I encourage you to read," he responds. "It actually walks though, in very plain language, what she sees as being the main challenges. One is that Iran cheats. Another is that Iran waits us out until the end of a 15 year period of significant nuclear constraints, and one is that Iran uses the deal as green light to engage in all kinds of problematic behavior in the region." However, Sullivan believes in the ability of the United States and the United Nations to enforce stricter terms.

"That is going to require a comprehensive American strategy using all the tools at our disposal, working closely with our allies and partners, and sending a clear message to Iran right from the start," he says. "There will be consequences–if you cheat, we will not let you wait us out, and we're going to be there at every turn checking on your efforts to engage in. negative behavior in the region."

Our conversation is wrapping up, and now I throw in some get-to-know-you questions. Sullivan reads all kinds of newspapers and political blogs, but doesn't watch television news because it's not illuminating and too time-consuming. He loved his time at Yale (both as an undergraduate and a law student), and his best

Graduated from Yale College with a degree in Political Science in 1998. Edited the *Yale Law Journal* and *the Yale Daily News.*

Received M.Phil. from Oxford as a Rhodes Scholar in 2000. Was managing editor of *Oxford International Review.*

Received J.D. from Yale Law School in 2003.

Clerked for 2nd Circuit Court of Appeals Judge Guido Calabresi and Associate Justice of the Supreme Court Stephen Brever.

Worked as chief counsel to Minnesota Senator Amy Klobuchar.

Advised Hillary Clinton during her 2008 campaign for the Democratic nomination.

friends from college are still among his closest and even spoke at his wedding this summer (in Battell Chapel, no less). He calls Harry Truman his political hero and considers himself a "Truman Democrat."

The most interesting answer comes when I ask what his favorite books are. He immediately replies Pride and Prejudice and The Great Gatsby. This surprises me because they're novels, and both unapologetically romantic. He did not choose a nonfiction book or a political manual or a Russian epic (Clinton's favorite novel is Dostoevsky's The Brothers Karamazov). He chose two books that are about love and passion and dreams. Maybe this is why he truly doesn't seem like a politician, even though he is heavily involved in their world.

I ask him if he has any final thoughts he'd like to share, and he mentions something he had said earlier: "Policymaking is a study of imperfections."

He wants people to understand that, in his own words, "When we learn about government, we learn about institutions and interests; we don't learn as much about the fact that no institution can be more than the sum total of the human beings that comprise it."

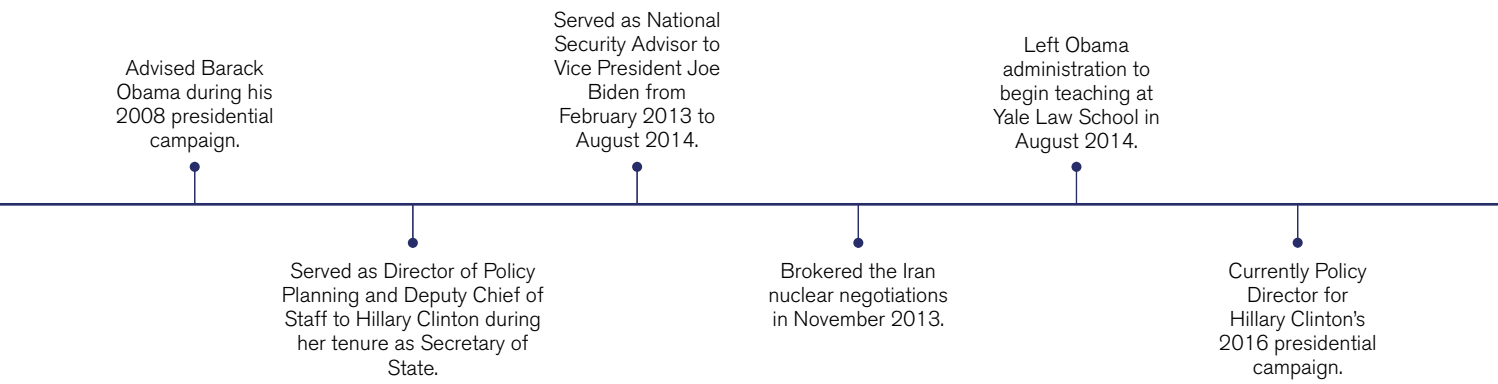
The next day I attend a Master's Tea hosted by Jonathan Edwards College, at which he is the special guest. The house is packed, one of the most well attended Teas I've ever been to. I end up sitting on the floor in the back. He starts talking and doesn't sound particularly different than he did the day before. Still, his presence seems to have somehow been dialed up to fill the room. Talking about his early history, he leaves it to Master Penelope Laurens, the interviewer, to tell the audience about his Rhodes Scholarship and academic achievements, all of which he never once mentioned when I interviewed him.

One story in particular captivates the audience. He describes a group of heads-of-state leaving a meeting in Copenhagen at 3:00am. There was a blizzard outside, so they end up having to wait while their motorcades pull up one at time, forming "the world's weirdest taxicab line."

After 15 minutes of waiting Nicolas Sarkozy, in the middle of the line, looked up at the sky and shouted in English, "I want to die!" The other heads of states immediately burst into applause. This is indicative of many of the stories to come: funny, relatable, interesting, but ultimately not very revealing.

In front of a crowd, he seemed equally as comfortable speechifying as he was in our one-on-one talk (although his wording was no less colloquial). He even responds to a few aggressively worded "gotcha questions" with total cool-headedness. The content of what's being communicated is pure political speech, but the tone is so confidential, so easy to like, that you forget to be skeptical.

As the Tea ends, I begin to walk over to him to thank him again for agreeing to be profiled, but a bit of a crowd surrounds him. I can't hear what he's saying from across the room, but I can see that every listener's face is rapt. This is the man who helped convince Iran to give up most of its nuclear capability; I guess I shouldn't be surprised that people like him so much. He plugs his boss's agenda and campaign, but he does it so naturally and charismatically you forget to ask yourself whether it's all a performance. Maybe Sullivan is the only one who really knows the answer to that question. Still, when so much of politics is performance, that blurring of lines might be his greatest asset.



you're a flake

you're a flake

BY **ADAM D'SA**

I REMEMBER EXACTLY WHERE I was when I got my most recent voicemail: in my room, completely unbusied. I glanced down at the name that appeared on my vibrating phone and very deliberately brought my finger to that button which only a completely calloused heart can allow you to press: ignore call.

The voice message was only two sentences. "Your phone only rang like twice," it said, "Why are you avoiding me, Adam?"

The question surprised me, not because it was accusatory, but because it seemed to me that the answer was obvious given the world that we inhabit. Yes, I had been rude in blowing someone off, but the confrontation somehow seemed like the true breach of decorum.

My initial response was to adopt the heavy accent of a Southern woman chastising a visitor who didn't say grace at the dinner table and think to myself, *That's not the way we do things around here.* Because surely this person already knew the answer to the question. Surely they were already aware of the code. They must know that outside of lecture halls and seminar rooms, Yale teaches us all one core tenet of social wisdom: if you ignore your problem, it will go away.

Like the unique squat every hitter takes when he enters the batter's box and readies himself for a pitch, every college student has their own signature way of blowing off their friends. While some master a single tactic, others are Renaissance men, dabbling in and perhaps excelling at a variety of methods. In general, though, your typical flake falls into one of three categories.

// you're a fla

// you're a fla

straight up ignorers

Your garden variety college flake is likely to fall into this first category because it requires very little acumen but is generally effective. All that is required to employ this method is to play dead—meet any texts or calls with radio silence. The inherent risk, of course, is that an in-person confrontation will definitely be awkward. In my opinion, the FOF[1] should leverage such a gift of fate and intensify the standoff as much as possible by shouting something about how excited they are to see that their friend has risen from the grave like a modern Lazarus.

With the advent of iMessage and Facebook message, there exists a subcategory of the straight up ignorer: people that turn their "read receipt" functionality on. They don't answer your message but have their settings such that you can see they read it, putting a nice wrinkle into the old-school method. You've got to hand it to these people because they are just power tripping. They know that no words they could author would have the same impact as you seeing the tiny "Read 4:07 pm" beneath your message through your tear-soaked eyes for the twentieth time in the middle of the night.

On the other end of the spectrum from the brass-balled read-receipt people are those who are too noncommittal to even properly execute the ignoring method. They ignore your message but then offer you a conciliatory "sorry didn't see this!" after some time. Is there a more transparent lie than claiming to have not reacted to the stimulus of a digital square that lights up in the palm of your hand? "But the message was delayed!" they'll cry, or "I didn't get it at all actually!" No, it wasn't. Yes, you did. I sent a text message, not my family's generations-old carrier pigeon with a handwritten note tied to its gimpy leg.

[1] "Friend of Flake"

interference runners

If the ignorers are simple protozoa of the college flakes, then this second category constitutes a more complex, multicellular organism, a bit further down the evolutionary tree. This is where the artistry begins. Unlike those in the first category, these people play the game.

The most conventional members of this group will exhibit a generally prompt response to inform you that they are, in fact, busy–sorry! Their explanation may be in the form of a single conflict or a laundry list of other priorities. Did you know that your friend goes to Yale College? Not only are they taking the maximum number of allowable credits at this prestigious university, but they are also a member of several of its clubs and co-curricular activities. They are captain of its football team. They are its president. And you could not even begin to fathom what they have done, what they have sacrificed, for their community. And yes, they do a capella.

A variation upon this tactic is what I like to call the "turnaround jumper." This constitutes a hard no to your request followed by an unappealing or plainly unrealistic counteroffer. This person cannot have lunch with you but maybe you'd like to watch them put their clothes in the dryer later? They can't go out tonight but would you want to come see them IN FIVE MINUTES FOR FIVE MINUTES before they head to class? In just a few weeks, their father will be in town, and what do you say you go get precautionary colonoscopies done, just the three of you?

monsters

"I'd love to come to brunch but my grandfather actually just passed away. Not sure if I've told you, but I was orphaned at a young age and so he took me in before my third birthday. And so all of my memories from when I was a boy center around this man, my Pop-Pop, who basically raised me. I'm Mexican on my mother's side and his dying wish was that his ashes be mixed into the soil of the village where he grew up, so I am driving down to Tijuana now with his urn in the passenger seat. Let's hang out soon though!"

Surely these people are going straight to hell. Not only is a lie of this magnitude wholly excessive given that the task at hand is saying no to a brunch invite, it is also such an extraordinary risk. As awkward as it may be to see someone who is playing dead in person, imagine seeing your friend walking on Chapel Street when they are supposed to be burying their close relative across the border.

Let's get one thing straight: the monsters are not monsters because they lie. All of the above tactics involve dishonesty. And it's not just the flakes. The pattern is predictable and comforting: flake offers lame excuse, FOF feigns acceptance of that excuse, and the world keeps on spinning. It's okay that you don't want to hang out with your friend, and it's okay that they don't believe that your phone died or that you're busy. It is monstrous to interrupt the mutual goodwill of this exchange, but there is something that would be worse than even this final category: honesty.

In lieu of the aforementioned tactics, any one of us could opt for a simple, "no," along with the truth that we don't want to spend time with someone. But I, for one, cannot imagine anything more devastating than having someone say no to my well-intentioned invitation simply because they don't enjoy my presence. Please have the decency to at least pretend I don't exist or concoct a recently deceased Pop-Pop whose grave needs digging. Considering the alternative helps us realize that the blowoff is not an exercise in heartlessness but in compassion. We jump through hoops to flake on our friends in artful, novel ways in order to spare their feelings. Next time your friend's phone goes to voicemail after one ring and you channel lawyer-Tom Cruise in *A Few Good Men* readying yourself to scream, "I want the truth!" think about whether that truth really is something we can handle. At the tone, hang up.

online preview

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State of the Union: As Grad Students Organize, Tension Mounts

by Thomas Gould '19

In March, New York University became the first private college to recognize its graduate students' right to unionize. Here at Yale, the Graduate Employees & Students Organization (GESO) hopes for the same–soon. But the administration isn't backing down. Where does GESO go from here? Thomas Gould '19 investigates.

A Beef Over Belief: India's Food Intolerance

by Zainab Hamid '19

In September, a man was dragged from his home near New Delhi and beaten to death. His only fault: he ate beef. Is more is at stake than steak? Zainab Hamid '19 digs deep into India's religious roots for the answer.

The Rise of the Outsider Candidate: Trump, Sanders Spark Interest in Primary Debates

by Alexander Pecht '19

In August, more viewers tuned into the first Republican debate than the World Series. National interest in the primary debates has exploded. But it's unclear whether substance is behind the spectacle. Will interest in the debates provoke deeper conversations on campus? Alexander Pecht '19 explores.

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